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THREE TIMES A MONTH

Adventure



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*** START OF THE PROJECT GUTENBERG EBOOK THE LOOM OF
LIES ***



THE LOOM OF LIES

By W. C. Tuttle

Author of "According to Ng Loy," "Blind Trails," etc.

It was an August evening in the valley of the Bunch Grass, and in a year so dry that the poplars and cottonwoods along the Lost Horse River had already turned yellow, and the leaves of the willows were a crackling carpet to the tread of thirsty stock.

No rain had come to the valley since the last Chinook winds had swept the winter snows, and the river was merely a shallow watercourse of evil-smelling fluid. The rolling hills, which extended back to the encircling mountains, were as brown as burlap, and the range cattle were dusty of hide, thin of flank and red-eyed from the heat.

At the north end of this valley, its boundaries extending to the encircling cliffs, through which came the road out of Blackfoot Pass, was the JHF ranch, owned by John H. Fann, known throughout the valley as “John the Baptist.” This was not because of any religious proclivities, but because of his enormous size, his great white beard, which swept almost to his waist, and his massive head of white hair, hanging to his shoulders.

Just now John Fann sat on the broad steps of the JHF ranch house, a rambling, unpainted structure, his elbows on his knees and his hands concealed under his great beard. He might well have posed for Rodin’s “The Thinker,” although there was a trifle more of sorrow than of thought in his half-closed eyes.

Behind him, leaning against one of the porch posts, stood “Ma” Fann, a thin, sad-faced little woman, with large, brown eyes, and a wisp of colorless hair, drawn tightly back and knotted in what was commonly known as a “pug.” She was looking off across the seemingly endless hills, which had lost their drab hues of day and were painted in ivory and lavender in the glow of the setting sun.

But Ma Fann’s eyes and expression did not register that she was viewing the beauties of the painted hills. She had seen them many times in the last fifteen years. Perhaps she had marveled at the Master Artist’s handiwork at some remote time, but that time was long forgotten.

Just out in front of the steps was Bob Kern, squatted on the heels of his boots, as he drew meaningless patterns in the dust with a piece of willow-branch. He was a thin-waisted cowboy, with a face as thin and bony as the face of a half-starved Indian. His nose had been broken and grew at a peculiar angle, and one eye was not exactly set in a straight focus, but his thin-lipped mouth was full of good teeth.

Bob Kern lifted his thin face and squinted narrowly at John Fann. He looked down at the dust-patterns and cleared his throat softly.

“‘T’s all right, John—’f yuh look at it thataway. It ain’t noways my point of view. Rustlin’ ’s rustlin’, and it don’t make no difference whether it’s me ’r you or the King of Siam—it’s still rustlin’.”

“Yes, it’s still rustlin’,” said John Fann softly. “Men will always steal, I suppose. Sometimes I wonder why, Bob.”

“Why?” Bob Kern squinted closely, and then looked up at Ma Fann, “Will yuh go inside the house, Ma? I’ve gotta swear a few notes.”

Ma Fann smiled wistfully.

“Swearing doesn’t help, Bob.”

“Mebbe not you, Ma—but it does me. It makes me so —— mad, I tell yuh. Here they’ve been stealin’ JHF cattle for a year, until—” Bob Kern spread his hands wearily—“Honest, Ma, we ain’t got enough left t’ wad a shot-gun.”

“Is it as bad as that, Bob?”

“Wel-l-ll,” drawled Bob, “mebbe it ain’t quite that bad, Ma, but it sure is gittin’ serious. Another year at this rate and there won’t be a JHF cow on the Bunch Grass range.”

A rider was coming down one of the angling trails toward the main gate, riding slowly. He dismounted and opened the gate, which creaked dismally. Somewhere a cow bawled softly. The gate creaked shut and the man started toward the corral, leading his horse. The man was short and fat, with the waddling walk of a duck.

“‘Splinter’s’ likely hungry, Ma,” observed John Fann.

“He mostly always is,” said Ma Fann, “I’ll put the biscuits in the oven.”

She turned and went slowly into the house. Bob yawned and sat down on the lower step, where he humped over and rolled a cigaret. In a few minutes, “Splinter” Martin waddled up from the corral. He sat down heavily beside Bob and helped himself to Bob’s tobacco.

“I run across ‘Chet’ Gunning t’day,” said Splinter hoarsely. Splinter always talked as if suffering from a severe cold.

“Thasso?” Bob showed little interest.

“Over by Singin’ Angel Flats,” explained Splinter. “Me and him had a little talk.”

“Yuh would,” nodded Bob. “Chet ain’t none secretive.”

“I reckon he’s right, at that,” grunted Splinter. “‘F I was the sheriff I’d ’a’ found it out long before this.”

“Oh, yuh would, would yuh?” exploded Bob. “I s’pose you knowed it all the time, didn’t yuh? Now, that’s fine of yuh, Splint.”

“F’r gosh sake, what ails you?” croaked Splinter. “You don’t need t’ ride me, cowboy. Right’s right and don’t wrong nobody.”

“Don’t quarrel,” advised John Fann softly. “That does not mend matters, boys. Splinter, you better wash up for supper.”

Splinter got up slowly and started for the rear of the house.

“And don’t forget that you’ve got two ears and a back to yore neck,” added Bob.

Splinter stopped.

“Zasso? Huh!”

He waddled back, grasped Bob by the ears and looked him over closely.

“Well, well! I sure admire yuh, Robert Emmett Kern. I admires any man who makes a discovery and immediate and soon passes out his information to his friends. You ranks with some of our great discoverers, cowboy; but I’d say you was jist a little more rank, at times.”

“Supper is ready, boys,” said Ma Fann from the doorway. “Have you washed, Splinter?”

“No, ma’am—” quickly—“but I’ve had a lesson in it. Be right with yuh, even if I dislocate m’ shoulders.”

Splinter went to the rear of the kitchen, placed the battered wash-basin on a bench and poured some water from a five-gallon kerosene can, which had been fitted with a bail. Noisily he washed his face and dried it on a coarse towel.

He could hear Ma Fann singing softly as she placed the supper on the table. It was an old church hymn, sung off-key, as if the singer’s mind was far from in tune. Splinter listened, his eyes half-closed, the rough towel held tightly in his two hands. He heard John Fann and Bob Kern clump into the dining-room, the closing of the oven door, as Ma Fann removed the biscuits. He picked up the wash-basin and slowly poured out the soapy water.

“Gawd A’mighty made them two,” he said softly, meaning John and Ma Fann. “He made ’em t’ look kinda like me and the rest of the folks, but He must ’a’ took special pains, I reckon, ’cause they’ve got somethin’—that—we—ain’t—got.”

He hung the battered wash-basin on the wall, picked up his hat and went in through the kitchen door. Ma Fann was standing at the stove, looking down at a pan of brown-topped biscuits, holding a plate in her hand. Splinter stepped in beside her and she looked up at him. Quickly she glanced toward the door which led into the dining-room, and then her hand darted inside her waist and she handed Splinter a small kodak picture.

It showed two little children, little chubby things, sitting on the ground, looking up like two little robins at the approach of the mother bird. Splinter's face broke into a smile and he glanced at Ma Fann. Tears were running down her cheeks, but her lips were drawn in a hard line.

Splinter cleared his throat softly, gave her back the little picture and patted her clumsily on the shoulder as he went into the dining-room.

"He must 'a' washed his ears," stated Bob loudly. "Look at the danged pelican. Whatcha doing—cryin', Splinter? You've got tears in yore beautiful eyes, angel child."

"Soap!" grunted Splinter, easing himself into a chair. "I'm gittin' so danged clean that I wash m' eyeballs. Got a good notion t' build a bath-tub, so we could take a good washin' every month or so."

"My gosh, yuh don't need to go to extremes!" exclaimed Bob. "Just because yuh washed yore neck and ears once, don't go and get a lot of dudish notions."

There was little more said during supper. Splinter, who usually carried the bulk of the conversation, was silent and thoughtful.

He and Bob Kern had been working for the JHF outfit for nearly three years, and they knew the inside life of most of the Bunch Grass range folk. There had been another cowboy working there when they came; a wild-riding, hard-drinking, handsome young man, whose name was Barr Wyeth. He was a good cow-hand, but he did not seem to fit in at the JHF.

And then there had been Nell Fann, the daughter, a dark-haired, dark-eyed, strong-willed girl of nineteen. And she had fallen in love with Bob Kern. But Bob Kern did not have the broken nose and the one unreliable eye at that time. That was a memento of a broken cinch and an outlaw horse.

John and Ma Fann had smiled upon the engagement. They both swore by Bob Kern, and John Fann had made his plans to turn the management of the ranch over to Bob Kern. But when Bob had recovered from his accident—he was not the same Bob Kern, outwardly. And who can say that any maid of nineteen will believe that beauty is only skin deep?

Barr Wyeth was undeniably handsome. Range rumor linked his name with Nell Fann, and John Fann had foolishly taken her to task for it. And John Fann lost. A recital of Barr Wyeth's failings only seemed to enhance his few virtues to her, and inside of a week they had eloped.

Never by word nor deed had either John or Ma Fann showed that they were broken-hearted over the match, but Nell had never come home—never had seen her father and mother, except at a distance, possibly. But fortune smiled upon Barr Wyeth. With the last few dollars he owned he won a small stake at poker. Then he recklessly plunged into roulette until his winnings went well into thousands. At midnight that night the gambling house of Buck Kelly at Bunch Grass, known as the Buck Horn, closed its games and announced that the house was broke.

Barr Wyeth had cleaned them out. With his winning he had bought the Lightning ranch and brand and set himself up as a stock-man. The Lightning ranch-house was located twelve miles from the JHF, and seven miles from the town of Bunch Grass.

Barr Wyeth drank considerable and gambled at every opportunity, but fortune only smiled upon him once. He hired two wild-riding cowpunchers, Mark Ells and "Windy" Hart, whose monthly earnings went to swell the exchequer of the several drink emporiums in Bunch Grass, or to those who engineered the destinies of green-covered tables.

Many times had Barr Wyeth and John Fann met, but never did they speak nor recognize each other in any way. Barr sneered at the mention of John the Baptist, but the name of Barr Wyeth apparently meant nothing to John Fann.

Then the JHF cattle began to disappear; began to dribble away. Bob and Splinter had noticed it first and had told John Fann about it. He was unconvinced, but after a few months he began to realize that unless something was done the JHF brand would only remain on the iron itself.

Bob Kern had found the first clue—the track of a horse wearing a bar-shoe. This horse had been used in the roping of a calf. There was the remains of a small branding fire. There was nothing to show that it was a JHF calf, but honest cattlemen are not in the habit of roping and branding calves far out in the open range.

Bob had given his information to Splinter, and inside of a week they had discovered the owner of that horse. It was Bob who had discovered the horse and he had sworn Splinter to secrecy.

Then Splinter had found a yearling heifer wearing a blotted brand on the right hip, while on the other hip was the jagged streak of the Lightning brand, which had been burned on with a running-iron. The other brand had been blotted entirely, but the blot was on the exact spot of the JHF registry.

Again Bob swore Splinter to secrecy. There was still no absolute evidence. A week later, Splinter found the evidence of another range branding, and near the fire he found a hand-made bone hondo, on which had been burned the initials B.W. A small piece of frayed rope attached to the hondo showed that the weakened rope had broken and the hondo been lost.

And with this evidence, Bob Kern had gone to John and Ma Fann. Splinter had asked him to do it while he—Splinter—was not there. It had been hard for Bob to do this. Down deep in his heart he still loved Nell Wyeth, and little less was his love for John the Baptist and Ma Fann, who was “Ma” to every cowpuncher the length and breadth of the valley.

Neither of the old folks had expressed an opinion. He had simply stated his evidence and they knew that he would not lie. Their daughter’s husband was robbing them—had been robbing them for nearly a year.

“That is the evidence,” said Bob. “Shall I report it to the sheriff?”

“No,” said John Fann. “This shall be our secret, Bob.”

And that was why Bob Kern had said—“Rustlin’ is rustlin’, and it don’t make no difference whether it’s me, or you, or the King of Siam—it’s still rustlin’.”

After supper was over Bob and Splinter went to the bunk-house.

“You told ’em, didn’t yuh?” queried Splinter, as he removed his boots.

“Yeah.” Bob nodded slowly. “I told ’em, Splinter.”

“Did John get sore?”

“Like he always does. It must ‘a’ hurt ‘em both like ——, Splinter. They didn’t say nothin’. Ma just kinda took hold of a post with both hands, but John didn’t do nothin’ but look off across the hills. I don’t reckon they was thinkin’ much about Barr Wyeth.”

Splinter shook his head.

“No-o-o, I don’t reckon they was, Bob. Ma showed me a picture of Nell’s twins.”

“I seen it. ‘Pastry’ Pell swiped it at the Lightnin’ and brought it to her.”

Pastry Pell was sort of a lazy cowboy who worked extra at the different ranches, and had a habit of mixing in every one’s business.

“Goin’ t’ tell the sheriff, Bob?”

“Not if John has his way about it. He don’t want anybody t’ know, but—aw——Splinter, suppose we was in his place?”

“A rustler’s a rustler, Bob,” reminded Splinter.

“Jist what I got through tellin’ him. But he won’t do anythin’. I reckon the Lightnin’ can rustle every JHF cow on the Bunch Grass hills and John the Baptist won’t say a word, on Nell’s account.”

“That’s right,” agreed Splinter, and then dolefully, “I—I wonder if I talked too much t’day. Dawg-gone it, I met Chet Gunning and me and him talked quite a little.

“He asked me how things was comin’ along, and I told him we’d likely last six months longer. Kind of a fool remark t’ make, and he asks me what I meant; so I told him that somebody was liftin’ JHF cows.

“He wanted t’ know how long this had been goin’ on and I told him. He got kinda mad and wanted t’ know why John the Baptist hadn’t told him. Then——” Splinter threw down his cigaret and ground out the lighted end with the heel of his boot—“Then I told him about the yearlin’ with the vented brand and the Lightnin’ put on with a runnin’-iron.”

“Uh-huh,” said Bob slowly, thoughtfully. “You told him about all there was t’ know, didn’t yuh, Splinter?”

“Well, I never stopped t’ think how John would take it. I might ‘a’ knowed I s’pose. Yuh don’t reckon Chet will start anythin’ on what I told him, do yuh, Bob?”

“There’s an election in November,” said Bob meaningly, and then, “What did Chet say?”

“He said it wasn’t givin’ a sheriff a square deal to keep things quiet thataway. I told him he better talk it over with John, bein’ as it’s John’s cows. We had quite an argument, and he said he’d come out and talk with John.”

Bob yawned wearily and leaned back on his bunk. He was sorry that Splinter had talked with Chet Gunning. Chet had never been friendly to Barr Wyeth, and Bob knew that right now Barr Wyeth was working against Gunning in the coming campaign.

Gunning was a man of about forty years of age, tall, dark, hawk-faced and with a drooping, black mustache. He was known as a good shot, fast on the draw and tireless in the saddle. Gunning was not a good “mixer,” and many expressed surprize that he had been elected.

He was a single man and “batched” alone in a little shack at the outskirts of Bunch Grass. Even his deputy, the genial, roly-poly Andy Allard, had to confess that he had never become well acquainted with the sheriff. But Gunning was efficient, ambitious and had made a good officer.

And Bob Kern knew that Gunning would make trouble for Barr Wyeth. Not that Wyeth did not have it coming to him, but Bob hated to be mixed up in it, because it might look like he was working against the man who had married his sweetheart.

It was the following morning, just after breakfast, when Chet Gunning rode up to the porch of the JHF ranch-house and dismounted. John Fann had watched his coming from within the house, but now he came out on the porch and greeted the sheriff.

Splinter was down at the corral, but Bob had stayed at the breakfast-table talking to Ma Fann. Bob heard John’s greeting to the sheriff; so he picked up his hat and went to the front door. Gunning was leaning against the side of the porch, talking to John Fann about the interminable drouth when Bob came out.

“Howdy, Chet,” greeted Bob, “how’s crime?”

“Well—” the sheriff brushed some tobacco flakes off his shirt-front and half-smiled—“it appears to be doin’ real well, Kern—if what I hear has any truth in it.”

John Fann glanced quickly at Bob, as if wondering who had told the sheriff, but Bob was calmly rolling a cigaret.

“Accordin’ to what I hear, there ain’t no mystery about it,” remarked the sheriff slowly, “but I thought I’d have a little talk with John Fann before I went ahead on the case.”

“I never was good at riddles, sheriff,” said John Fann, “so you had better speak plainly.”

“Riddles?” The sheriff lifted his eyebrows, “I reckon you know what I mean, John. Seems to me that the Lightnin’ has struck in the same place more than once.”

“You’re doing the talking,” reminded John coldly.

“I sure am,” replied the sheriff, just a trifle nettled. “I reckon it’s time for me to do a little talkin’, don’tcha think?”

“Perhaps I might answer that, if I knew what you mean, sheriff.”

“Aw, ——!” exploded Gunning. “You’ve had a lot of cattle stolen and you’ve got enough evidence to send a certain party to the penitentiary, haven’t yuh?”

“Have I?” John Fann seemed mildly surprised.

“Have yuh?” Gunning’s eyes snapped. “Well, haven’t yuh?”

“Did you come out here to find out if I have, or to tell me that I have?”

“Well, ——!” Chet Gunning seemed at a loss to know what to say.

“Now, look here, John Fann. I reckon you’re tryin’ to shield Barr Wyeth, but I’m —— if the law don’t take it up in spite of you. Mebbe you don’t care if the Lightnin’ steals yuh blind, but crime is crime, and I’m goin’ to stop it; *sabe*?”

“Since when did the law hire you to ride herd on the JHF stock?” queried Bob Kern easily, as he came down the steps and stopped near the sheriff.

“About the same time that it gave you the right to horn in on a conversation that don’t concern yuh,” retorted the sheriff sarcastically.

Bob grinned widely.

“Then I reckon we’re both talkin’ foolish, Gunning. Suppose you go back and run yore office, while we runs the JHF, and mebbe we’ll all do well.”

“Thasso?”

Gunning squinted critically at Bob. He knew that Bob would fight with fists or guns, and that he was fairly adept with either. Gunning was not looking for a fight; so he ignored Bob and turned to John Fann.

“I reckon I’ll just go ahead on what evidence I’ve got, John.”

“What evidence have you got?” queried John.

The sheriff hitched up his belt and looked around. Splinter was coming up from the corral and the sheriff greeted him warmly.

“Hello, Martin. I was just checkin’ up on some of the things you told me yesterday about the rustlin’ of the JHF stock. I reckon you had the right idea.”

Splinter flushed slightly and looked at Bob, who was looking straight at him. Splinter spat thoughtfully and knitted his brows.

“The things I told yuh, sheriff?” Splinter’s brow smoothed and he grinned widely. “I reckon yore dreamin’, ain’t yuh? Yesterday? Why, I ain’t seen yuh for a week.”

Gunning stared at him for a moment and then walked over to his horse. He looked coldly at John Fann and Bob Kern and seemed about to speak, but mounted his horse and rode stiffly down through the big gate and headed down the road toward Bunch Grass.

Every city, every town and every community has its one certain eccentric character, and Pastry Pell was the one which fate had dealt to Bunch Grass. He was thin, almost to the point of emaciation, pasty of face, colorless of eye and with protruding teeth, as yellow as dirty ivory.

His garb was as drab as his physique and personality; yet he was a good cow-hand—when he would work, which was not often. He preferred to meander about the range, eating here, sleeping there; tolerated, but never welcome. He was unable to read or write, yet he had an uncanny nose for news or scandal—preferably, scandal. He owned his own horse, saddle and bridle, and carried his six-shooter shoved inside the waistband of his

trousers, where, on account of his lack of avoirdupois, it hung precariously, threatening at any time to become an inhabitant of the aforementioned trousers.

But a gun was of little use to Pastry, if you were willing to take Pastry's own words for it. He had hired out to the Double-Triangle at round-up time, and the foreman had asked him about his outfit.

"I've got a bronc and a saddle and a bridle and a six-gun—the —— thing."

"What's the matter with the gun? Ain't it no good?" queried the boss.

"Yeah, it's a good gun," admitted Pastry. "It's a —— good gun, but what the —— good is it? I never see nothin' to shoot."

And it was Pastry Pell that Sheriff Chet Gunning met, as he dismounted in front of his office in Bunch Grass. Pastry made it a point to visit the office at irregular times, because he might hear something to tell others about.

Sheriff Gunning knew Pastry very well. Also, Sheriff Gunning was in a bad frame of mind, following his interview with the three men at the JHF ranch. He knew there was nothing he could do, as long as John Fann refused to admit theft. Splinter's denial of their previous conversation made the sheriff boil.

"Huh! You ain't eatin' right, sheriff," was Pastry's opening comment.

"What's that?"

The sheriff turned from tying his horse and stared at Pastry.

"Stummick's disorderly, that's what she is," declared Pastry with conviction. "You ought to quit eatin' meat f'r a while and stick to vegetables."

"Now, what in —— are you talkin' about?" demanded the sheriff.

"Jowls kinda yaller," explained Pastry. "Eyes blood-shot. Yore either sufferin' from bad circ-lation, torpid liver, or——" Pastry considered the sheriff closely—"somebody done somethin' to git under yore skin."

"Mm-m-yah!" snorted the sheriff and went into the office.

After a moment, which Pastry consumed in masticating a huge chew of tobacco, he followed the sheriff inside.

The sheriff had seated himself at his desk and begun sorting some legal papers, but now he looked up, a scowl on his face. But Pastry ignored the scowl and sat down against the wall, while the sheriff considered him for a space of time.

“Know who rides a horse that wears a bar-shoe?” asked the sheriff.

“Bar-shoe?” Pastry expectorated toward the door and nodded quickly. “Barr Wyeth.”

“Hm-m-m!”

The sheriff squinted closely at Pastry for a moment and went back to examining his papers.

“Why?” queried Pastry. The question had excited his natural curiosity. “What about a bar-shoe?”

The sheriff considered his answer well before he said—

“There’s a lot of JHF stock missin’.”

“Yeah?”

Pastry got slowly to his feet and leaned against the wall.

“And what about the bar-shoe?”

The sheriff leaned back in his chair and considered the ceiling for several moments.

“There’s a yearlin’ somewhere in the hills, wearin’ a vented brand on the right hip, and on the other hip is a Lightnin’ mark, run on with an iron rod.”

“Well, f’r gosh sake!” exploded Pastry. “Does John the Baptist know it?”

“Yeah, he knows it.”

“Huh!”

Pastry’s thin face seemed to twist with eagerness. This surely was a choice morsel; something worth the telling, and it would surely be told with elaborations and variations.

“Hot, ain’t it?” grunted Pastry, moving toward the door. “I ain’t never seen it so hot, ’cept in Death Valley, and I ain’t never been there. Hope we have a rain.”

“Be a long dry spell, if we don’t,” remarked the sheriff, but his sarcastic reply did not quite reach Pastry Pell, who was already hurrying to the hitch-rack in front of the Buck Horn saloon.

For a long time the sheriff stared down at the mass of papers in front of him, a calculating look on his face. He knew that John Fann would not prosecute Barr Wyeth, on account of Barr's wife, and he wondered what Barr Wyeth would do when he found himself branded publicly as a cattle-rustler.

Pastry lost no time in going to the Lightning ranch; in fact, his horse was a-lather when he swung off at the ranch-house and clumped loudly up the rickety steps. Mrs. Wyeth met him at the door, and even in his excitement, Pastry could see that she had been crying.

She stepped aside to let him in. In the next room a baby was crying fretfully. The room was poorly furnished, but clean as wax. The walls were hung with cheap crayon enlargements of the Wyeth ancestors, but there were no likenesses of any of the Fann family. An old upright organ stood in one corner, with oil lamps surmounting the brackets on each side.

"Where's Barr?" asked Pastry hoarsely.

"He—he's asleep," faltered Mrs. Wyeth, half-indicating a closed door with a jerk of her head.

Pastry knew that Barr Wyeth had spent most of the night at a roulette table in the Buck Horn and had consumed quantities of liquor.

"What did you want of him?" queried Mrs. Wyeth anxiously.

Pastry fidgeted. He wanted to talk to Barr Wyeth, but not in the humor that he would probably find him now; so he decided against waking him up to receive the news.

"I jist wanted t' tell him t' look out for the sheriff," said Pastry nervously.

Mrs. Wyeth's face went white. She knew that Barr had come home drunk—what had he done that he should look out for the sheriff?

"What is it, Pastry?" she breathed the question. "What has he done?"

Neither of them saw Barr Wyeth's door open several inches.

"I got this from the sheriff," said Pastry slowly, "and I dunno what he's goin' t' do, but it kinda looks like Barr has been stealin' cows from the JHF."

"From the JHF?"

Mrs. Wyeth shut her eyes tightly, as if trying to blot out the thought.

“Yes, ma’am. Seems that there’s a horse that wears a bar-shoe mixed up in it, and yore husband rides a horse that’s shod thataway. And then there’s a yearlin’ that’s had the JHF blotted and a lightnin’ has been burned on with a runnin’-iron.”

Mrs. Wyeth clutched the top of the table with both hands and stared at Pastry.

“Are you—sure—of—this?” she panted.

“That’s what the sheriff said,” nodded Pastry. “I asks him if John the Baptist knows about it and he said that he did.”

The door behind them creaked warningly and Barr Wyeth came toward them. His eyes were blood-shot and his tousled hair hung down low over his forehead. He had only removed his boots, and his clothes were wrinkled and disarranged. Several days’ growth of beard made Barr Wyeth anything but the handsome young man he had been a year before.

“Barr, you—” began Mrs. Wyeth, but he stopped her with an impatient motion of his hand and walked up close to Pastry.

“What’s this stuff you’ve been tellin’ her?” Barr’s voice was half-angry, half-inquiring.

“Just what the sheriff told me,” explained Pastry nervously. “He said _____”

“That I was a rustler?” interrupted Barr.

“Yeah, and he said——”

“Drop that!” snapped Barr, grasping Pastry by the shoulder. “Did Chet Gunning tell you to come out here and tell this to my wife?”

“——, no! He never told me to tell it to anybody.”

“But you found this out from him, didn’t yuh?”

“Yeah, he—don’t pinch me thataway! How’s a feller goin’ to talk with you pinchin’ off his arm? He said that there was a yearlin’ with a vented brand and that the Lightnin’ had been run on with——”

Barr had drawn slightly away, after he had released Pastry’s arm, and now he smashed the luckless Pastry full in the mouth with his clenched fist.

Pastry reeled backward, reaching blindly for support, while into him went Barr, smashing with both fists, driving Pastry out through the open

door and knocking him backward off the porch, where he landed on his shoulders in a scraggly rosebush.

Barr halted at the edge of the porch, panting, cursing, while Mrs. Wyeth clung to his sleeve and begged him to stop. Barr shoved the hair out of his eyes and stared at her. He was berserk with rage and shoved her roughly aside as he went back into the house.

Pastry got wonderingly to his feet, dazed, bleeding. He had lost all sense of direction and his first two steps brought him in violent contact with the porch, after which he sat down real hard and held his face in his hands.

Mark Ells and Windy Hart had seen the fight on the porch from down by the corral, and now they hurried up to the porch. Ells was a stoop-shouldered, hard-faced young man with sagging lips and a flat nose. Windy Hart was a big man, narrow between the eyes, almost chinless and with a generous-sized nose, heavily veined in red.

They walked up and considered the fallen Pastry, who managed to get to his feet. He sopped some of the gore off his face with the sleeve of his shirt and groaned whiningly. Mrs. Wyeth was still standing on the porch, one hand braced against a post.

“What’s a matter, Pastry?” asked Windy curiously.

Pastry spat painfully and shook his head.

“Can’tcha talk?” queried Mark.

“Yeth,” Pastry lisped from the loss of teeth.

“Tell us what was the matter, won’t-cha?”

“No, thir,” Pastry shook his head. “I ain’t goin’ t’ thay nothin’. I—I—” Pastry glanced toward the open door of the ranch-house—“I thed too much ath it wath.”

As Pastry turned toward his horse, Barr Wyeth came out of the house. He was dressed now, even to his belt and holster, and under one arm he was carrying a carbine in a scabbard.

He did not speak to his wife, but as he started past her she grasped him by the arm.

“Where are you going, Barr?”

He jerked away from her and started down the steps.

“Barr, where are you going?” she asked again.

He stopped and looked back at her:

“Well, if you want to know so —— bad; I’m goin’ down to see the sheriff and then I’m goin’ out to the JHF.”

“What for, Barr?”

“What for?” Barr laughed hoarsely. “That’s a —— of a question.”

He turned and looked at Pastry, who had mounted—

“Get off that horse, you coyote pup!”

Pastry lost no time in dismounting.

“Now, you stay here until I’m gone; *sabe?*” ordered Barr. “I ain’t goin’ to have yuh packin’ a talk to Chet Gunning nor to John the Baptist.”

“What’s gone wrong, Barr?” asked Windy.

“They’re brandin’ us a bunch of thieves—or rather, they’re brandin’ me a thief, and I’m goin’ to vent that brand —— quick!”

“Huh!” blurted Windy softly.

Barr whirled and hurried down to the corral, where he began saddling. Windy and Mark exchanged glances. Pastry was standing beside his horse, nursing a very sore face, and Mrs. Wyeth still braced herself against the post, white-faced, sick at heart over it all.

From back in the house came the wailing of a child. A grasshopper crackled its way past the house and a vagrant breeze stirred the dusty foliage. Barr Wyeth mounted and rode straight out toward the main highway, never looking back, and they watched him fade out in a cloud of dust.

“Well, I gueth I can go now,” Pastry’s voice broke the stillness, and he got painfully aboard his horse.

They watched him ride away, going slowly, feeling tenderly of his battered face.

Mrs. Wyeth turned her eyes and looked at the two men.

“Isn’t there anything we can do?”

“No, ma’am, I don’t reckon so,” replied Windy.

She turned wearily and went back into the house. For a moment the two men looked at each other, and then they went straight to the corral, saddled their horses and rode into the hills.

Buck Kelly, owner of the Buck Horn saloon and gambling-house, was not a flashy type of gambler; rather he was a quiet dresser, quiet in his conversation and drank little.

But he was a hard man to beat. He played shrewdly, without visible emotion, and it was impossible to tell whether he was a hard loser or not. He had come in from “Nowhere” and bought out the Southern saloon, which he had renamed the Buck Horn.

Physically, Buck Kelly was only average. The lines of his square-cut face were deeply graven, his lips thin, and his black hair slightly tinged with gray. He loaned small amounts of money to the cowboys, which insured their pay-day patronage, and was not averse to giving them a liberal liquor credit.

But Buck Kelly, early in the game, showed that the Buck Horn was not a brawling-hall. With his two hands he had whipped a pair of belligerent cowboys. One of them had tried to draw a gun, but Kelly took it away from him in a way that showed the crowd that Kelly knew a few good tricks.

Then, just to show the crowd that he was not unfamiliar with the weapon in his hand, he called their attention to a mineral-water lithograph on the wall, which depicted a very lovely fairy-like female person, with a flaming jewel for a head-dress. It was at least twenty feet away, but without apparent aim, he obliterated the aforementioned jewel.

This served to establish Buck Kelly as a bad man to seek trouble with, and gave him a standing with the hard-riding sons of the Bunch Grass hills.

Barr Wyeth had left the Lightning with a very definite purpose in mind. He was going to Bunch Grass and make Chet Gunning eat dirt. He was not entirely free of the potations of the night before, and when he came in sight of the drab, unpainted little town of Bunch Grass, after seven miles of dusty road, he was less bloodthirsty than when he started.

He was still firm in his purpose, but his throat was very dry and his nerves were badly in need of a stimulant. He had seen much red, but now it had blended with morose reflections until it was almost indigo. Therefore he headed for the hitch-rack in front of the Buck Horn and lost no time in imbibing liquid cheer.

And not far behind him came Pastry Pell. He had managed to keep Barr Wyeth in sight—or rather he had kept within what would have been sight if

Pastry had been able to see things in a normal way, which he was not.

Pastry circled the town and entered the sheriff's office by the rear door. He found the sheriff standing in the front door, calmly surveying the street. He had seen Barr Wyeth ride into town, and he had noted that Barr rode with a rifle in a boot under his right saddle-fender. Now he turned and squinted at Pastry Pell, who had halted near the center of the room.

"For ——'s sake, what happened to you?" grunted the astonished sheriff. Pastry's face was not at all nice to look upon, as it had swelled considerably.

"Thed too much," lisped Pastry painfully.

"Oh!" The sheriff did not need any explanation.

"And he cometh down here to thoot you—Wyeth," explained Pastry thickly. "Thed he wath."

"Thasso?"

The sheriff glanced back up the street and walked up to Pastry.

"Pell, you're a —— of a lookin' thing. Did Barr Wyeth do this to you?"

"Yeth," simply.

"I suppose you went out there and told a lot of —— lies, like you usually do, didn't yuh? Some day you'll get enough sense to keep your mouth shut."

"That day ith today," declared Pastry solemnly. "If I knowed that the earth wath comin' to an end, I'd keep my mouth thut."

There was no doubt but what Pastry was thoroughly in earnest, and the sheriff smiled grimly.

"So Barr Wyeth has come down here to shoot me, eh?"

"Yeth," nodded Pastry quickly. "And ath thoon ath that ith over he thed he wath goin' after John the Baptith."

"Uh-huh," nodded the sheriff absently. "He might, at that."

"You goin' to arrehth him?" asked Pastry.

"Arrest him? What for? Because he came down here to shoot me? Or because he beat you up?"

"No thir, but becauth he ith a rustler."

"I ain't got no evidence that he's a rustler, Pastry."

"No evidenth?"

Pastry swallowed hard and felt tenderly of his swollen eyes.

“Not a —— bit!” exclaimed the sheriff.

“Then,” said Pastry slowly, “you ain’t got a lot more thense than I have. I think you better thwear off today too—like I did. You thed too much to me and when I thed what you thed——”

“I reckon you’re right,” interrupted the sheriff, “but I’ll be lucky to get off with only a busted face.”

“If you think thith ith luck,” Pastry patted a swollen lip, which protruded like the bill of a duck, “you muth have a —— of an idea of mithfortune.”

After the sheriff had ridden away from the JHF ranch, Bob Kern and Splinter saddled their horses and rode away toward Comanche Cañon. John Fann and his wife sat down on the porch and deliberated over the situation.

“It’s going to mean trouble, Ma.” John Fann shook his head sadly. “Not trouble for us, but for——”

“Barr Wyeth is hot-headed, John. Even if you would not prosecute him, there is still—disgrace.”

“And disgrace means a killing in this country, Ma.”

“I wonder if Barr needed the money so badly that he stole to get it? He drinks and gambles.”

John Fann got slowly to his feet and picked up his hat. “I’m going to the Lightning ranch, Ma.”

“To see Barr Wyeth? John, he hates you so badly?” Ma Fann did not want to see him go.

“Yes, he hates me,” agreed John softly. “I think he has taught Nell to hate me, too. I suppose it is my reward for trying to interfere in their marriage.”

“But what can you do—what good can you do in talking to Barr Wyeth, John?”

“I don’t know, Ma. Sometimes I wonder why he is so bitter toward us. Why have we never seen Nell?”

Ma Fann turned away. She too had heard some of the things that Barr Wyeth had said against them; things for which there was no reason. It was true that neither of them was in favor of her marriage to Barr Wyeth, but they had calmly bowed to the inevitable.

“I don’t know what time I’ll be back, Ma,” stated John. “I’ll cut across the hills, and maybe I’ll go to town on my way back.”

It was only about seven miles across the hills to the Lightning ranch, and John Fann rode into the ranch-house yard about fifteen minutes after Pastry Pell had ridden away, following Barr Wyeth to Bunch Grass.

Nell Wyeth was standing in the doorway, staring off across the hills as he rode up. It was the first time he had ever come to her home—the first time she had ever been face to face with him since her marriage. For a long time they looked at each other, and then—

“Where is your husband?”

John’s voice was husky.

“What do you want of him?”

Her voice was barely audible, and she walked slowly out toward him. He looked down at her from his horse, but said nothing.

“What do you want of him?” she repeated anxiously now, and her voice was husky.

“I want to talk with him, Nellie,” softly. She shook her head quickly.

“Don’t try to talk with him. You know how he feels toward you—how he has always felt toward you, after the things you have said about us—and he’s ten times worse now.”

“After the things I have said about you,” repeated John Fann slowly.

“What things, Nellie?”

Mrs. Wyeth shook her head.

“Too many things to remember.”

“Too many to remember,” repeated John slowly. “I don’t think I understand. What could I say against you?”

“That’s just it. Just because you did not want me to marry Barr, you have said these things, I suppose. I have managed to make Barr ignore everything, but now—” She turned and looked down the dusty road toward town—“Now, he has gone to Bunch Grass, and I think he is going to make serious trouble.”

“I think I understand,” said John patiently. “More talk.”

“More lies, you mean!”

“I hope so, Nellie.”

“And they started at the JHF ranch, too!” indignantly.

“Yes, I think they did.”

“And Bob Kern had a hand in it,” declared the woman heatedly. “He has been a dog-in-the-manger ever since I married Barr Wyeth. Oh, I’ve heard the things he has said.”

John Fann stared down at her and a sad smile creased his eyes.

“If Bob Kern has mentioned your name, it has been in his prayers, Nellie.”

“Is that so? Well, it wasn’t in his prayers when he said that he would drive Barr Wyeth out of the Bunch Grass range and make me sorry that I ever turned him down because he had a crooked face.”

“No, that don’t sound like a prayer—nor like Bob Kern. I will try to find Barr Wyeth in town.”

And without saying good-by, John Fann turned his horse around and rode toward town on his big, gray horse, while the woman leaned against the side of the porch and stared after him, her eyes filled with sorrow. She wanted to call after him, but she bit her lips and stifled the impulse.

Perhaps, she thought, Bob Kern might be right after all. The Lightning outfit was just about at the end of its rope. Drink and the green cloth had taken its toll of the outfit, and Bob had told her a few days before that he would probably lose the ranch. [see Transcriber’s note at end of text]

Then the suspicion suddenly struck her. Was Bob stealing cattle to try to recoup his losses? If he was, his enmity toward the JHF would naturally cause him to take their stock in preference to any other. Pastry Pell had said that there was a yearling which had been misbranded with the Lightning mark.

She went slowly into the living-room and sank down in a chair. The wife of a cattle-thief! If anything happened to Barr, what would become of her? And Bob Kern had said—but what had Bob Kern to do about it? There were the babies—the twins. And Bob had sworn that he was going to “get” the sheriff and John the Baptist. He was going to kill them.

She sprang out of her chair and ran to the bedroom. The twins were peacefully sleeping—two tiny little bundles of humanity. For a moment she debated, looking at them nervously, then she closed the door, ran swiftly out

of the house and down to the barn, where she began saddling her own horse. She was going to try to overtake her father and warn him.

Barr Wyeth did not drink wisely but he drank well—and alone, which was not at all like Barr Wyeth. Buck Kelly noticed this and tried to draw Barr into conversation, but without much success.

“You ain’t drinkin’ on a bet, are you?” queried Buck.

“On a bet?” growled Barr. “Whatcha mean?”

“You’ve had seven glasses of liquor in ten minutes, Barr.”

“What if I have?” Barr grew instantly belligerent, but Buck moved away and grew interested in a poker game.

“What business is it of his?” demanded Barr of the drink dispenser. “Tell me that, will yuh? How —— old does a feller have to be to know what he wants? Huh?”

Barr surveyed the place, eyes half-closed.

“I just want to tell everybody that I’m of age and that I do as I —— please. There’s too many people around here that are tryin’ to run my business, and I’m tellin’ yuh all here and now that I’m tired of it; *sabe?*”

“Nobody tryin’ to run you, Barr,” assured Buck. “Go right ahead and get your skin filled with hooch. There’s a bunk in the back room, when yuh get so yuh can’t stand up to drink.”

“Is—that—so?”

Barr spaced his words carefully and his right hand dropped close to the butt of his holstered gun. One of the men shoved back from the poker table and left his cards where they had fallen in that deal. He was taking no chances.

Buck Kelly did not move. He knew that Barr was dangerous. Came the sound of a step at the door and Barr’s eyes flashed sideways to see Chet Gunning, the sheriff, watching him closely.

“Don’t move, Barr.”

The sheriff’s voice was coldly conversational. “Ain’t nobody goin’ to hurt yuh—if yuh don’t move.”

He walked up slowly, took Barr’s gun from the holster and handed it over to the bartender.

“Fangs all pulled nice and pretty,” observed the sheriff. “Now yuh can move, Barr.”

Barr turned and looked at the sheriff, who had stepped back. Barr’s lips showed like a white scar, and the muscles of his jaws stuck out like knotted ropes, but he knew that he was helpless now and might as well make the best of it.

“I’ll thank Pell when I see him,” said Barr thickly. “Let’s have a drink.”

But no one came up to the bar. The bartender handed out the bottle, and Barr poured out a drink. He looked back over his shoulder, but no one was paying any attention to him.

“Nobody wants to drink with a cow-thief,” said Barr bitterly, leaning across the bar and looking at his reflection in the mirror.

He lifted his glass and laughed harshly.

“Here’s how, you —— thief!”

He started to take his drink, but the glass halted at his lips. John the Baptist was coming in the door. Quick as a flash, Barr dropped his glass, grasped the heavy bottle, whirled around and flung it straight at the old man’s head.

Came the thud of the impact, the crash of breaking glass, as the bottle hit the floor, and John the Baptist went down in a heap, almost blocking the doorway.

And before any one could stop him, Barr Wyeth sprang over him and went out of the door, tore his horse away from the hitch-rack and headed for home in a cloud of dust.

Buck Kelly was the first man to reach John Fann’s side and he swore with relief when he saw that the bottle had struck the old man a glancing blow on the forehead, tearing and bruising the skin, instead of making a solid impact, which most surely would have crushed his skull.

“An inch further to the left and no law on earth would save Barr Wyeth,” said one of the men, as they helped John Fann into a chair and bathed his forehead.

“That sure is some caress to git from a son-in-law,” observed a grizzled cow-man seriously, proffering a none too clean handkerchief to use as a bandage.

Pastry Pell came in and became an interested spectator, and the men looked curiously at his battered countenance.

“My gosh, you must ’a’ been fightin’!” exclaimed one of the men.

Pastry shook his head.

“No, thir—not me.”

“That’s Barr Wyeth’s trade-mark,” said the sheriff.

“Why did he call himself a cow-thief?” queried the grizzled cow-man. “I don’t *sabe* that, Chet.”

“Booze talk,” said Kelly quickly. “Too much booze.”

John Fann was recovering now. His eyes opened and he looked up at the ring of faces around him.

“Feel better, John?” asked the sheriff.

John nodded and got to his feet. He was a trifle unsteady as he felt of his bandaged head, but he smiled and nodded.

“Yes, I think I am all right again.”

“You had a —— close call,” observed Kelly.

“And Barr Wyeth never stopped to see whether it was just a close call or a cinch,” added the sheriff. “Right now he thinks he killed you, John.”

“Probably be dithappointed when he finds out that he didn’t,” observed Pastry lispingly.

“You talk too —— much!” snapped the sheriff, and Pastry nodded quickly in agreement, which brought a laugh from the crowd.

“Kelly, can I have a little talk with you?” asked John.

“Sure yuh can, John. Come back to my room.”

The old man walked unsteadily, as if still dazed from the blow, but followed Kelly to his room at the rear of the saloon. Kelly motioned him to a chair and sat down on the edge of the cot.

“I want to talk with you about Barr Wyeth, Kelly,” said John Fann wearily.

His hand trembled as he smoothed his white beard, which was now streaked with blood.

“All right, John.” Kelly nodded and bit the end off a fresh cigar. “Go ahead.”

“Do you think that Barr would steal?”

“Well, that’s a hard question, John. I heard him call himself a thief today—a cow-thief, I think.”

“He was drunk today,” said John slowly, as if trying to excuse the statement. “Drunk and mad, I guess. My cows are being stolen, Kelly; and the guilt points at Barr Wyeth.”

“Enough evidence for an arrest, John?”

“The law requires too little evidence, Kelly. It is easy to secure an arrest; not difficult to get a conviction. Acquittal does not mean exoneration. No, the law is not fair. All men may be equal before the court, but the process of law, the juggling of lawyers—no, I do not care to talk of evidence, Kelly.”

“And they are your cows, John.”

“Yes, my cows.”

“Why would Barr Wyeth steal your cows?”

“Kelly—” John the Baptist leaned forward and looked the gambler straight in the eyes—“Barr Wyeth must be badly in debt. Cards and drink will eat up any business, and the Lightning never was a rich ranch. I think that Barr stole to try and pay his debts.”

Kelly laughed and considered the tip of his cigar.

“Then why don’t he pay ’em, John?”

The old man shook his head sadly. He knew that Barr must owe Buck Kelly a lot of money, and Buck should be in a position to know if Barr was making any attempt to pay off his debts.

“Kelly, will you take a mortgage on my ranch?” John Fann did not look at Kelly as he spoke.

“Your ranch—the JHF?”

John nodded—

“Yes, my ranch.”

“Why—I dunno.”

Kelly stretched and chewed rapidly on his cigar.

“How big a mortgage, John?”

“Five thousand dollars.”

Kelly stopped chewing his cigar and stared at the old man.

“Yuh ain’t aimin’ to pay Barr Wyeth’s debts, are yuh?”

“Five thousand isn’t much on the JHF, Kelly.” John Fann ignored Kelly’s question.

“No, that’s a fact—nor much toward Barr Wyeth’s debts.” John stared at Kelly curiously.

“You don’t mean that Barr owes more than that.”

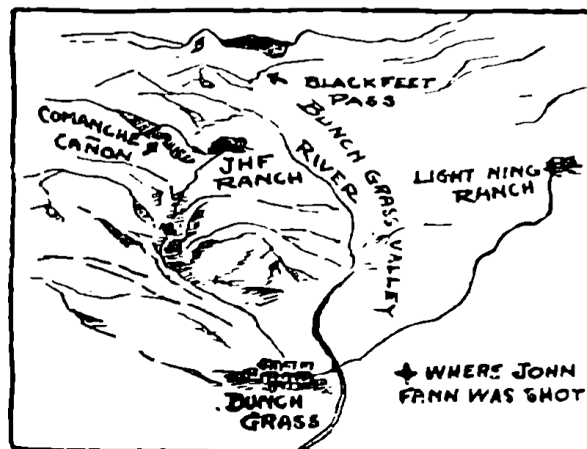
“Barr Wyeth won the price of the Lightning ranch from me,” said Kelly slowly. “He should have quit gambling.”

John Fann humped a little lower in his chair and his great gnarled hands seemed to fairly dig into his overall-clad knees. His eyes were nearly closed, and Kelly thought for a moment that the old man was suffering from the blow on his temple, but he lifted his head and looked at Kelly.

“I’ve heard you say that you would like to own a ranch, Kelly; what will you give me for the JHF?”

Kelly laughed.

“Buy your ranch, John? Why, the JHF is the best ranch in Bunch Grass valley, man. Do you mean that you would sell out to pay the debts of Barr Wyeth? Give up your hard-earned money to—say, John the Baptist, you’re crazy! What would you do? Do you think that Barr would ever pay you back—that he would take you and your wife in and keep yuh? —, you make me tired!”



“No,” John shook his head. “I do not expect much from Barr Wyeth. Neither does he expect much from me; so we might both be surprized, Kelly. Me and Ma are getting old—don’t need much.

“It has been a hard year for the cattle. The JHF has suffered with the rest—maybe more—and what’s left on this range are pretty blamed thin. We haven’t shipped any beef this year, Kelly; and you know what that means. I’ve managed to keep Bob and Splinter.”

“Still, the JHF is a good ranch, John.”

“Yes, a—good—ranch.”

“And you want to sell it to pay Barr Wyeth’s debts?”

“Perhaps,” the old man smiled wearily, “I need money for myself, Kelly.”

Kelly snorted audibly and humped over, examining his finger-nails, as he considered the proposition. Then:

“John, I haven’t a lot of money. My business is almost as uncertain as the weather, but I’ve got about eight thousand dollars. Suppose I take a mortgage for that amount. The JHF is worth a lot more than that, but if you ever obligate yourself for more than that amount, somebody is going to take away your home.”

“Thank you, Kelly. I—I guess it will be enough.”

“Too——much!” growled Kelly. “I’ll have the papers made out, John. You come tomorrow morning and I’ll have the money for you.”

John Fann got to his feet and turned to the door.

“Kelly, I am trusting you to keep this quiet.”

“Well—” Kelly laughed shortly—“I’m just as ashamed of it as you are, John. I think I know Barr Wyeth better than you do.”

“And yet,” John Fann paused with the door half-open, “it was written long ago, ‘Let him who is without sin cast the first stone.’”

He closed the door softly. Pastry Pell was at the wash-stand, washing his swollen face, and he nodded to John Fann, but the old man was too deep in thought even to see him. Pastry grinned at himself in the cracked mirror and felt tenderly of his puffed lips.

And the sheriff was right when he said that Barr Wyeth thought he had killed John Fann. He had spurred out of Bunch Grass, dazed, fighting mad and half-drunk, but above all his whirling emotions came the soul-shrinking fact that he was a murderer.

Without warning, without giving the old man a chance in the world, he had killed him. There was no alibi, no defense in the world would save him. He tried to think calmly, and the thought smote him, that he had gone to town with murder in his heart. He had announced his intentions of killing Chet Gunning and John the Baptist.

Some one was coming down the road toward him, riding in a cloud of dust. Through dazed eyes he saw that it was his wife, and he mechanically drew his horse to a stop. She was close to him now, her face tear-stained, her eyes wide and inquiring. The dust from their horses' feet eddied up around them, blurring their faces.

"I killed your father."

Barr Wyeth's voice sounded like the voice of a ventriloquist's dummy, thin and unreal.

"You killed him," said the woman in a flat voice, as if admitting the truth. "You said you would, you know."

"That was a long time ago," said Barr wearily, slowly. "I remember that I said it—a—long—time—ago."

They stared at each other through the dust. The woman brushed a hand across her face, across her eyes, as if to wipe away the things that were before her. Then she turned her horse slowly around and started back toward the ranch. Barr Wyeth looked after her for a moment and then followed in her wake.

He was sober now and no longer dazed. No jury in the valley would ever acquit him, the evidence was all against him. He remembered that Windy, Mark and Pastry Pell were present when he had said he was going to "get" the sheriff and John the Baptist.

He felt sure that Pastry had told the sheriff and that the sheriff had disarmed him for that reason. It was a case of premeditated murder; murder in the first degree, punishable by hanging. He wondered if it would be worth while for him to go into the hills and take a chance on getting away. The whole valley would be against him.

Suddenly he wondered if he had really killed John Fann. His soul clutched at the thought, but he shook his head. The bottle had been nearly full of liquor; a heavy glass bottle, and he had thrown it with every ounce of

his strength. No, it must have crushed the old man's skull like an egg-shell, he thought.

It was a long way home for Barr Wyeth. Ahead of him rode his wife, looking into a blurred future for herself and the twin babies. Barr did not try to ride with her. He had hated John the Baptist, and just now, for the first time, he fully realized that John the Baptist was his wife's father.

"Why did I hate him so?" wondered Barr. "The things he said about me—that was the reason. Yes, that was it. I killed him for the things he had said about me. He didn't want me to marry Nell, but I fooled him. He said things about me and I killed him for saying those things."

Two riders were coming down the slope of a hill ahead of him, and now they came down onto the road. It was Mark Ells and Windy Hart, heading toward Bunch Grass. Both of them spoke to Mrs. Wyeth as they passed her, but she did not look up.

Both of them drew rein, as if to speak to Barr Wyeth, but he did not stop nor speak to them. He did not want to talk to any one. It seemed so useless to talk to any one now. They watched him ride away toward the ranch and looked curiously at each other.

"Can yuh beat that, Windy?" queried Mark Ells.

"Nope—yuh can't even tie it," declared Windy. "Barr was a whoopin' wolf when he left, but somethin' has sure shrunk his howl a heap. Might be worth findin' out."

Mark grinned widely and they rode on toward town.

Buck Kelly did a lot of high-powered thinking after John Fann went out. He swore softly to himself over the whole deal, but mostly at John Fann for being such a fool. Then he lit a fresh cigar, picked up his hat and went in search of the sheriff.

He found him in his office, and lost no time in telling him what John Fann proposed to do. The sheriff listened in evident disapproval.

"I ain't got a lot of use for John the Baptist, but I'm danged if I like to see him throwin' money away on Barr Wyeth," declared the sheriff. "I don't think there's any doubt but what Barr has been stealin' cows from the JHF."

“And the —— old fool is goin’ to hock his ranch to pay Barr’s debts,” growled Kelly. “As far as the investment is concerned, I can’t lose.”

“You’ve got a mortgage on the Lightning, haven’t yuh?” asked the sheriff.

“No, but I’ve got enough of Wyeth’s notes to cover the whole works.”

“And if Barr does get that money from John the Baptist, and does pay his bills, he’ll be payin’ it to you.”

“Sure,” nodded Kelly. “It’ll be a case of shiftin’ the debt to an old man and an old lady.”

“And Barr Wyeth will never pay it back, Kelly. You’ve got to refuse to give it to him.”

Kelly laughed and shook his head.

“If he don’t get it from me, he’ll get it from somebody else, Chet.”

The sheriff stared down at his toes, a frown between his eyes, but he suddenly looked up and leaned close to Kelly.

“Buck, this ain’t a square deal to let the old man do a thing like this, don’tcha know it? Will you back me up in a —— fool proposition?”

“What is it?” smiled Kelly.

“You’re payin’ him that money tomorrow morning. If he’s alone——” The sheriff hesitated—“Kelly, we’ve got to take a chance on him being alone and going home with the money. If he does, I’ll hold him up as he comes up through the cañon, and I’ll take that money.

“I’ll give it back to you, Kelly. There’ll be —— raised, but we’ll set pat; *sabe*? I’ll wear a mask and do it all up proper. We’ll let the old man think he’s a big loser, but he won’t be. Do yuh stand behind me in this?”

Kelly laughed and nodded.

“Chet, I’m with yuh. But for gosh sake, do it right. If you get caught it’ll look bad.”

“Who’ll catch me? Andy Allard is laid up with a sore tooth. It’s a cinch, if the old man is alone. I don’t think he’ll go to the Lightnin’ from here—— not after Barr hittin’ him the way he did.”

“It’s a —— of a note when the sheriff turns highwayman to keep another man from payin’ his debts,” grinned Kelly.

“Accordin’ to law, Kelly,” nodded the sheriff, “but I’m goin’ outside the law, and I’m bettin’ she works.”

“—— help us, if it don’t, Chet—Bunch Grass jurors won’t.”

Mrs. Wyeth rode straight to the ranch-house, where she dismounted and went inside. Barr followed her into the bedroom, where he found her on her knees beside the bed, her face buried in a pillow. The babies were awake and they stared up at him with wondering eyes.

The twins had never meant much to him before. He wanted to say something to his wife, to try to console her, but what could he say to her now, he wondered? Then he backed out of the room and took the horses down to the corral.

For a while he considered taking his swiftest horse and escaping into the hills, but decided against it. Then he went back to the ranch-house and sat down on the porch to wait for the sheriff.

The sun was setting behind the Medicine Men peaks, and the road to Bunch Grass was fading out in the mist of evening. Barr’s eyes were watching the road; watching for the coming of the sheriff and his posse. Darkness comes swiftly after sunset, but still Barr Wyeth waited.

His wife came out of the doorway and sat down on the porch, but she did not speak. He looked at her, but her face was only a white blur in the dim light. He knew that she was waiting, too. Then, out of the dim distance came the dark bulk of riders and turned in at the gate.

“They’re comin’,” said Barr Wyeth softly.

But the riders moved on to the corral, where they began to unsaddle; blurred misshapen figures.

“It’s Mark and Windy,” said Barr in a flat voice.

To Barr, it seemed hours that they consumed in unsaddling. Then they went into the bunk-house, and in a few moments later there came the yellow glow of their oil lamp. Then the door shut, cutting off the light.

“Good God, why don’t they come up here?” breathed Barr wonderingly, and it was more a prayer than an imprecation.

“What is the use?” asked Mrs. Wyeth.

Then the bunk-house door opened and one of the men came slowly up to the porch. It was Windy. He stopped and appeared to be looking at the house, as if wondering why there were no lights. Then he discovered them on the porch and came up closer.

"I was jist wonderin' if you'd gone away," he said apologetically.

"No, I didn't go away," said Barr thickly.

"I didn't see no lights," explained Windy, and then hesitated for a moment before he said, "I—me and Mark was jist wonderin' if you'd do us a favor, Barr."

"A favor? What do you mean, Windy?"

"Well," Windy laughed shortly, "last night Mark got sore and tore up our deck of cards, and I was wonderin' if you've got an old deck you'd loan us."

"A—a deck of cards?" parroted Barr. "Why, I—I——"

"I'll find one," said Mrs. Wyeth.

She went into the house and came out in a moment with the cards, which she handed to Windy.

"What's new in town?" Barr asked nervously.

"Deader'n a nail."

"Wh-what?"

"Bunch Grass allus is dead," said Windy. "Thank yuh for the cards."

He turned and started back, but Barr stopped him.

"Windy, did you see John Fann?"

"Yeah, I seen him." Windy hesitated for a moment. "The bartender said he was chargin' you up with a quart of hooch and a new bottle."

"But—but John Fann—" faltered Barr weakly.

"I dunno whether he's sore or not, Barr. It's a good thing yuh didn't hit him square. I'll git yuh a new deck of cards next time I go to town. Good night."

They watched him go back to the bunk-house and the door closed behind him.

"Barr," said Mrs. Wyeth softly, and her voice broke to a sob, "Barr, you ought to get down on your knees and thank God."

“I suppose so,” said Barr weakly, “but I’d likely make a mess of prayer, like I have everythin’ else.”

It was the following morning at breakfast that Bob Kern and Splinter Martin saw John Fann’s bandaged head. They had ridden in late and had not bothered Ma Fann for supper. Neither of them mentioned it, as they knew that John Fann would tell them, if he cared to have them know. But John Fann evidently did not care to tell them, and their curiosity naturally increased.

Ma Fann looked as if she had passed a sleepless night, but tried to be cheerful during the meal.

“We circled Comanche Cañon yesterday,” volunteered Bob, “and we made a pretty close count. There ain’t over two hundred head of cows on that end of the range.”

John Fann nodded thoughtfully.

“Betcha there ain’t over eight hundred JHF’s on the whole blamed range,” observed Splinter, as he balanced a piece of ham on his knife-blade, “and we had a tally of thirteen hundred and sixty-eight this Spring.”

John Fann stared at the table, as he slowly stirred his coffee.

“Bob,” he said thoughtfully, “how long would it take you and Splinter to throw all the stock onto the home ranch?”

“Eh?”

Bob dropped his fork and it clattered to the floor. He picked it up and squinted sharply at John.

“Round ’em all up and throw ’em in here?”

“Yes, Bob.”

“Why—” Bob stared at Splinter and shook his head wonderingly —“Why, I reckon we could do it in a week.”

“A week?” repeated John Fann slowly. “Well, I guess you can go ahead, Bob. Throw all you can in the horse pasture; there’s plenty of water there.”

He got up from the table, picked up his hat and went out of the room. They heard him clump down the front steps and go toward the stable. Ma Fann was standing at the stove, her back toward the boys, and Bob went over to her. He put his hand on her shoulder and turned her around.

“Ma, what does it mean?” he asked.

She shook her head and her eyes filled up with tears.

“Aw, gosh A’mighty,” muttered Bob. “F’r gosh sake, Ma, don’t cry! Here —” he drew a chair from beside the table and gently forced her to sit down. “Now, tell us about it.”

She wiped her tears away with her apron and shook her bowed head.

“He is going to sell all the stock. There was a man in Pine City who made him a flat offer a short time ago, but the price was so low that John wouldn’t take it. Now, he is going to sell out. He has given a mortgage on the ranch—on—the—old—JHF.”

“Aw ——!” blurted Splinter. “A mortgage on—say, this is the best darned ranch——”

“I didn’t know he needed the money so bad,” said Bob mournfully. “Me and Splinter have been takin’ forty a month a-piece, and we didn’t need it, Ma. Why didn’t he say he was pinched thataway?”

Ma Fann wiped away her tears and got to her feet.

“Well, we couldn’t winter all that stock, anyway. If it should be a hard winter, with the range in bad shape, we would have to buy hay.”

Splinter walked to a window and watched John Fann ride down the road toward Bunch Grass while Bob leaned against the wall and rolled a cigaret so thoughtlessly that he wasted half a package of tobacco.

“Then, I reckon, me and Splinter will have to rustle new jobs, Ma,” he observed sadly.

Ma Fann sighed and turned back to her pans.

“Mebbe,” said Splinter hopefully, “mebbe somethin’ will turn up.”

“Yeah, tha’s right,” nodded Bob. “Don’tcha worry, Ma. C’m on, Splint; we’ve gotta job ahead of us.”

They took their hats and went softly out of the house. Ma Fann looked after them tearfully. It would be like losing her own sons, and her heart echoed Splinter’s hope that something might turn up. She knew why John Fann was selling out his stock, putting a mortgage on the ranch, but she would not tell Bob and Splinter.

The two cowboys saddled up and rode into the hills. Their hearts were not in the work, and there was little conversation. They traveled slowly

along the ridges, working back into the breaks. There were few cattle in sight. Then Bob Kern drew rein on a ridge and considered the outlook.

“Splinter, let’s swing back and clean up the range between Bunch Grass and the ranch. We’ll clean out this bunch when we herd in from Antelope Creek, and I don’t feel like tacklin’ Antelope today. Whatcha say?”

“Suits me,” agreed Splinter. “It ain’t no ways a job that I relish, Bob. Dang it all, I wish I knowed some way to help John the Baptist. Who do yuh reckon hit him? Or was it an accident, do yuh suppose?”

“It wasn’t no accident,” declared Bob. “They’d ’a’ told about it, if it had been.”

“I’d like to meet the son-of-a-gun that hit him, Bob.”

“You’d have —— little to do but to clean up the mess, if I found out first,” said Bob savagely. “If the JHF was owned by anybody else, I’d ’a’ helped bust up that —— Lightnin’ outfit long ago. They’ll keep on liftin’ cows until I forget who I’m workin’ for.”

“Well, gosh all Friday, you ain’t the only one what is workin’ for the JHF,” reminded Splinter. “Any time yuh feel like startin’ somethin’, lemme know. Any old time you forget who yo’re workin’ for—I’m forgettin’, too.”

They turned and rode slowly back down the slopes, where the dry grass and brush crackled like tissue under their horses’ hoofs. Beyond them stretched the rolling hills, yellowed and browned and traversed by cattle trails. Farther beyond was the dark line of the Lost Horse River, which angled the length of the valley, and beyond that was the Medicine Men range, harsh and black in the sunlight.

Slowly they drifted around the heads of the cañons, coming nearer and nearer to the road which led from the JHF to Bunch Grass; a road that twisted its way through a narrow cañon, after leaving the flat country and opened out again before reaching the JHF ranch-house.

Suddenly Bob Kern reined his horse and leaned forward, listening.

“Thought I heard a shot,” he remarked.

“Well,” Splinter smiled indulgently, “is it anythin’ strange that we might hear a shot?”

Bob’s dusty face broke into a grin.

“No, that’s a fact. I reckon I’m kinda jumpy, and I never stopped t’ think.”

They moved along, skirting the edge of the cañon above the road, going slowly. Finally they came out on the rim, where they could see the road far below them. There were two horses standing close together—two saddled horses.

Just beyond them appeared to be a dark mass beside the road, which might be a man.

“What do yuh reckon is goin’ on down there?” queried Bob.

“Say, that looks like John Fann’s big gray bronc, don’t it? Ain’t that a man——”

Splinter stopped. One of the dark objects was a man. He appeared to get up from his knees and went quickly over to the horses. He mounted and rode swiftly toward town.

“There’s another man there!” grunted Bob. “There beside the road—that dark spot.”

“And that’s John Fann’s horse, or I’m a liar!” exclaimed Splinter. “Yuh don’t suppose that anythin’——”

But Bob had whirled his horse and was riding madly down the cañon rim, looking for a place to descend into the cañon. Splinter spurred after him. A short distance beyond, Bob whirled his horse over the edge and went angling and sliding down the steep hill, his horse fairly sitting down to keep from somersaulting, while close behind him came Splinter, ignoring the laws of gravity in his hurry to reach the road.

And they found John Fann lying beside the road, with a bullet in his head; his hair and beard gory with blood, but still alive.

“Good ——!” exclaimed Bob after a hasty examination. “He was shot from behind!”

The bullet had struck him back of his left ear and ranged upward.

“But he ain’t dead?” queried Splinter anxiously.

“No, but he ain’t a long ways from it. Poor Ma. This will about kill her, Splinter.”

“Who was the man who just left here?” demanded Splinter. “He’s the snake we’re after, Bob! Didja see what he looked like? What kind of a

bronc was he ridin'?"

Bob shook his head.

"I dunno, Splint. Dark colored horse, but I ain't got no idea who the rider was. Yuh can't tell nothin'—lookin' down on him thataway."

"But he's headin' toward town, Bob. One of us has got to stay here with John, while the other goes after a doctor and to try and find out who shot him."

"I'll go, Splinter; and —— help that man, if I find him! You stay here."

And before Splinter could protest, Bob vaulted into his saddle and was racing off down the road toward Bunch Grass. The other rider had had at least ten minutes start of Bob, and Bob was not sure but what this man had seen them on the cañon rim. There were innumerable places where this man could swing off the road and let him go past, but Bob did not hesitate. He wanted the doctor first of all.

It was over three miles to Bunch Grass, but Bob did not slacken speed. Behind him streamed a cloud of yellow dust, like the smoke screen of a destroyer going into action. And Bob rode with a six-shooter clutched in his right hand, praying that he might catch sight of the man who had ridden away from John Fann.

But he did not see him, and straight down the main street rode Bob, jerking his jaded horse to a slithering stop in front of the Buck Horn. He swung down and strode quickly inside.

Buck Kelly was at the bar, talking to a couple of cow-boys from the 76 outfit, while several more punchers were playing a game of pool and arguing loudly. Bob strode to the bar and up to Kelly.

"Buck," said Bob hoarsely, "John Fann was shot a while ago—shot from behind, while he was on the cañon road between here and the JHF."

"Shot!" gasped Kelly, and his face paled slightly.

"Old John the Baptist?" queried one of the cowboys.

Came the clatter of dropped cues and the pool-playing cowboys gathered around.

"He wasn't dead when I left," said Bob. "Splinter's with him. Shot in the head, boys. We saw the man who done the job, but we don't know who he was. He headed for town."

“For ——’s sake!” blurted Kelly. “Who do yuh suppose done it, Bob?”

Kelly was shaking in his shoes. He knew that the sheriff had gone out there to hold up John Fann, and he wondered if John Fann had put up such a battle that the sheriff had been forced to shoot him.

“You told the sheriff?” asked a cowboy.

Bob shook his head.

“Ain’t had time. Does anybody know if Doc. Knowles is in town?”

“I see him go into Pelliser’s store about five minutes ago,” volunteered a cowboy. “I’ll find him.”

He whirled and ran out of the door, and almost collided with the sheriff, who was coming in. He shoved the sheriff aside and ran across the street.

Bob grasped the sheriff by the arm and told him as quickly as he could of what had happened. Kelly was looking straight at the sheriff and their eyes met. The sheriff seemed to have grown old, tired; not at all himself.

“Old John Fann,” he repeated. “Shot in the head. All right, I’ll get a horse and be right with yuh, Bob.”

He turned and went out of the door. The cowboy was coming back to the saloon, bringing Doctor Knowles, a grayhaired physician who had spent most of his life in the Bunch Grass hills.

“What’s this?” he demanded anxiously. “John the Baptist shot? Somebody help me hitch up my buggy-team. We’ll take him home. Best place for him. Team’s in my barn and the buggy’s in the yard. Be with you in a moment.”

Two of the cowboys went out with him. Kelly turned to the bartender—

“I’m going along, Sam,” he said, and went out the rear door, where he kept a horse in a little stable.

The bartender shoved a bottle of liquor across the bar to Bob.

“Better take this along with yuh, Bob.”

Bob nodded and shoved it inside his shirt as he went outside. The cowboys were getting their horses, and in a few minutes the sheriff came from his stable, leading a tall, roan horse, which belonged to Andy Allard, his deputy, who was laid up with an ulcerated tooth.

“My horse went lame,” explained the sheriff wearily. “Lucky thing that Andy’s horse was in the barn.”

It was about fifteen minutes after Bob's entry into Bunch Grass that he rode back at the head of eight riders and Doctor Knowles in a buggy. The riders swung into a swift gallop, but Doctor Knowles kept close behind them, his seasoned team of broncos traveling like a runaway.

Buck Kelly and the sheriff rode stirrup to stirrup, but did not talk to each other. In fact, the sheriff seemed to try to avoid Kelly's glances.

John Fann was still alive, but unconscious. The doctor made a swift examination and ordered the boys to put John Fann into the buggy.

"Can't tell a thing," he replied to their questions. "Bullet is still in there. Maybe it cracked his skull."

"Do you think he'll live to tell who shot him?" queried the sheriff.

"Chances are he never seen the man."

"Better see what he's got in his pockets," said Kelly softly. "I handed him eight thousand dollars in currency just before he left town. I took a mortgage on the JHF."

The sheriff stepped over and searched through John's pockets, but there was no sign of the eight thousand.

"Who knew that he had the money?" demanded Bob.

"Judge Freeman, myself and John Fann," said Kelly slowly. He was trying not to incriminate the sheriff.

"The judge is a cripple, and you couldn't 'a' been there," said Bob. "John Fann never shot himself and stole the eight thousand."

Kelly looked at the sheriff, but the sheriff avoided his eyes. They loaded John Fann into the buggy and Doctor Knowles picked up the lines.

"Do the best you can for him, Doc," said the sheriff. "I'm going to try and find the man who shot him."

"You goin' back to town?" queried Kelly, and the sheriff nodded.

"I'll go back with you, Chet. There ain't nothin' I can do at the ranch. Lemme know as soon as yuh can what chances old John has got."

The buggy, with its cowboy escort, started on, and Buck Kelly rode slowly back toward town with the sheriff.

"Now, yuh can talk to me, Chet," said Kelly meaningly.

The sheriff turned in his saddle and faced Kelly.

"Buck, do you think I done that?"

“I’m listenin’, Chet.”

“Good ——! I wouldn’t harm John the Baptist, Kelly. I went out there to pull off that hold-up, but I went up the cañon further, where I waited. I hadn’t been there more than fifteen minutes, when I heard a horse comin’, but it was comin’ from the JHF.

“Then I seen Barr Wyeth ride past, goin’ toward town. He didn’t see me, but I figured that everythin’ was off now. He’d meet old John and old John would give him the money.

“I didn’t want to run into them; so I stayed there a while. I don’t know how long it was, but it must ‘a’ been half an hour. Then I heard a shot. I got on my horse and went down the road in a hurry.

“I found John’s horse comin’ up the road; so I caught it and took it back with me. Then I finds John flat on his back in the road. I packed him into the shade and examined him. The money was gone. I was wonderin’ what to do about it, when I happens to look up at the rim of the cañon and I sees two riders, stopped on the edge.

“I know they’ve seen me, and I think it’s Bob Kern and Splinter Martin. Then——” the sheriff shook his head——“I reckon I got panicky, Kelly. I got my horse and busted out for town. I left the road and circled to come in the back way. I seen Bob Kern streakin’ along the road. My bronc looked like he’d swum the river; that’s why I’m ridin’ Andy’s horse.”

“Yuh sure it was Barr Wyeth?” asked Kelly.

“Y’betcha. Passed within twenty feet of me, Kelly.”

“If that’s told, there’s goin’ to be a first-class lynchin’, Chet.”

“And I’d have a —— of a time tryin’ to tell my part of it, Kelly. Why, even a jury wouldn’t believe my story. All the evidence I’ve got is the fact that Barr Wyeth rode past me. That don’t make him a murderer—not in the eyes of a jury.”

“Well——” hopefully——“I hope John the Baptist lives. To —— with the eight thousand dollars. If he dies I’ll tear up the —— mortgage.”

They rode into town and stabled their horses. Several more cowboys were in the Buck Horn, including Pastry Pell, Windy Hart and Mark Ells. They crowded around and shot a volley of questions at Kelly, but he was able to give them little satisfaction.

“I tell yuh she’s gittin’ to be a tough country,” declared Pastry Pell. “I’m figgerin’ to pull out and see if I can’t find a calm and serene locality. Who do yuh reckon shot the old man, Kelly?”

Kelly shook his head.

“I think it was a robbery.”

“Killed old John the Baptist to rob him?” queried Pastry Pell. “Why, that ain’t——”

“He had eight thousand dollars with him,” said Kelly.

“For gosh sake!” exploded a cowboy. “Eight thousand!”

Pastry Pell’s mouth remained open so long that one of the cowboys reminded him of the fact.

“And it was gone?” queried Pastry.

“Didja think they’d divide up with him?” snapped Kelly.

“Sheriff got any idea who done it?” questioned Windy.

“Yuh might ask him,” replied Kelly.

“Is John the Baptist goin’ to die?” asked Pastry.

“Now, ain’t that a —— of a question?” complained Kelly, addressing the cowboys. “Is it any wonder that he got his face smashed?”

“Aw, I never got it smashed for askin’ questions,” declared Pastry. “I got it for answerin’ questions that wasn’t asked.”

Bob Kern rode ahead and broke the news to Ma Fann. He expected her to faint or scream, but she was made of the fiber that bends much before it breaks. Swiftly she prepared a bed, while Bob heated water on the kitchen stove.

The cowboys carried the old man into the house and put him on the bed, while Doctor Knowles laid out his shining instruments and prepared to remove the bullet.

“Get Mrs. Fann away, can’t you?” asked the doctor of Bob Kern. “This ain’t going to be pretty to watch.”

Bob went out into the kitchen and gently led Ma Fann out to the back porch.

“Set down, Ma,” he urged. “There ain’t a thing yuh can do in there, and I want to talk with yuh.”

She sat down beside him and he put his hand on her shoulder.

“Ma, I want to tell yuh that somebody—the feller that shot John—stole eight thousand dollars out of his pocket.”

She nodded slowly.

“I was afraid of that, Bob. I knew he was going to get it today.”

“Why didn’t he ask me or Splinter to go with him? My gosh, I’d ’a’ hired an army, Ma.”

Ma Fann did not reply. Bob was rolling a cigaret and as he started to wet the edge of the paper with his tongue, his eyes seemed to focus on a spot a few feet away. He spilled the tobacco from the paper as he shoved away from the steps and peered down at the ground.

“Who was here today, Ma?” he asked.

“What do you mean, Bob?”

He came back and looked down at her.

“Ma, was Barr Wyeth here this mornin’?”

She nodded slowly.

“Yes. Just after you left, Pastry Pell came past here and stopped to talk a minute. He had been in a fight, I think. He only stopped a minute. Then, about nine o’clock, Barr came. I was out here and he rode around. He asked for John and I told him that he was in Bunch Grass.”

“Did he act mad?”

“No, I don’t think so, Bob.”

“Nine o’clock, eh?”

Bob glanced at his watch and put it back in his pocket.

“Bob, you don’t think——”

Ma Fann stopped with the question unasked, but Bob knew what she meant.

“Who hit John yesterday, Ma?”

She looked at him, her eyes filled with tears.

“It was Barr Wyeth, wasn’t it?”

She nodded, but did not look at him.

“I thought so,” he said softly.

“But that don’t mean ——”

Ma Fann hesitated, trying to convince herself that Barr was innocent.

“And John Fann was shot and robbed between nine and nine-thirty—two miles from here.”

Splinter clumped out through the kitchen and came out on the porch.

“Doc got the bullet,” he announced. “It’s a .44.”

“And nine out of every ten six-guns in this valley are forty-fours,” said Bob sadly.

“What does doc say about John?”

“He dunno. Says there must ’a’ been some shock, but he don’t think it’ll be serious.”

Ma Fann got up and went into the house.

“She ain’t no quitter,” said Splinter. “By golly, she’s got more nerve than I have.”

“Barr Wyeth was here this mornin’, lookin’ for John,” said Bob meaningly. “He pulled off down the road after that.”

“Yeah?”

Splinter shoved his hands into his overall pockets and rocked on his heels.

“Well, Mister Wyeth, we’ll be right on yore trail. Let’s go and have it over with.”

“Zasso?” Bob’s tone was sarcastic. “I suppose all we’ve got to do is to ride over there, ask Barr Wyeth for the money—and get it, eh? Then we accuses him of shootin’ John Fann and he’ll admit it. My gosh, that’s a simple way to settle things, Splinter.”

“Barr Wyeth started out to kill Chet Gunning and John yesterday,” stated Splinter. “I heard the boys talkin’ about it. Barr hit John with the bar-bottle at the Buck Horn and then beat it for home. That’s where John got the busted scalp.”

“I know,” nodded Bob, and went into the house.

The cowboys were getting ready to leave and Bob went to Doctor Knowles, who was sitting beside the bed.

“How long are yuh goin’ to stay, Doc?”

“Until John regains consciousness,” replied the doctor. “Anyway, I shall be here several hours.”

“Just so Ma ain’t left alone,” explained Bob. “Me and Splinter are goin’ to town.”

“I’ll stay until you get back,” assured the doctor.

Bob went out the back way, spoke to Splinter and they went out to their horses. The other cowboys were already going down the road and Bob did not try to catch up with them.

“Look for the bar-shoe, Splinter,” said Bob. “So dang much travel has likely wiped out the signs, but we’ll try and find where he turned off the road.”

Here and there, for the first mile, they were able to find an occasional imprint of a bar-shoe, but beyond that the dust became deeper and all trace was lost. They spent some time in examining the spot where John Fann had lain, but so much trampling had erased every clue that might have been there.

From there on they searched closely, but there was no sign of a bar-shoe to be seen.

“If Wyeth was in Bunch Grass this mornin’, somebody must ’a’ seen him,” declared Bob. “Accordin’ to Kelly, nobody knew about the money, except Kelly, Judge Freeman and John himself. Barr didn’t know it. He never shot old John to get the money, but he must ’a’ found it afterwards. I reckon he can use it to good advantage.”

They rode on into Bunch Grass. The cowboys had preceded them, and a crowd was gathered around the Buck Horn, listening to the latest news from the JHF. The sheriff was there, but was saying little. He was frankly worried over the whole thing, and was not sure that Kelly had believed his story.

Numerous questions were shot at Bob and Splinter, but they were unable to improve upon the stories that had already been told. Windy and Mark were there, listening much but saying nothing. As usual, Pastry Pell had made himself the center of interest although he knew nothing, except from hearsay.

“It ain’t for me t’ accuse anybody,” said Pastry, “but she ’pears as a open book t’ me.”

“It sure would have to,” laughed Splinter, “and with letters a foot-high, if you was able to read ’em with your eyes. You look like you’d tried to bulldog an engine.”

“He talked too much, like he’s doin’ now,” said Windy meaningly.

Pastry licked his lips and tried to think of a suitable answer, but decided to keep still.

“John the Baptist was shot with a forty-four,” said Bob, “but that’s no clue at all. How many of us shoot a forty-four?”

A check of the crowd showed that all except Pastry Pell and Splinter used that caliber gun; their guns were forty-five Colts.

“Eight forty-fours and two forty-fives,” said Bob. “That’s about the average all the way across this range.”

The talk became desultory and Bob caught a signal from the sheriff. In an off-hand way they drifted together and went across the street to the office.

“What’s your idea, Kern?” queried the sheriff.

Bob hesitated. He knew that the sheriff would immediately arrest Barr Wyeth if he told him that Wyeth had been at the JHF that morning. In Bob’s mind there was no doubt that Barr Wyeth had shot and robbed John Fann, but still he held back the information.

“I ain’t got no idea, Chet,” Bob shook his head. “I seen the man ride away, but I’ll be danged if I could tell whether he was a big man or a little man, or whether he rode a black, brown, bay or a gray horse. They was kinda in the shadows, and you know how things look on a bird’s-eye view thataway.”

The sheriff sighed with satisfaction. At least, Bob did not suspect him.

“What about Barr Wyeth?” asked the sheriff.

“What about him?” asked Bob innocently.

“Aw ——!” The sheriff appeared peeved. “What are yuh tryin’ to do—protect him?”

“Are you tryin’ to arrest him?”

“No-o-o, not unless he’s guilty. Yuh see, he came to town yesterday to kill me and John the Baptist, but I took his gun away. He hit old John with a

bottle and darn near busted his head. Under them circumstances, yuh've got to admit that it looks bad for Barr Wyeth, don'tcha?"

"Too bad," agreed Bob.

"Whatcha mean, Kern?" quickly.

"Nothin'. I don't reckon there's anythin' for yuh to do but to arrest Barr and try him for it. Yo're sure he done the job, ain'tcha?"

"Nope—not sure enough. I thought I had enough evidence to shove him over for rustlin', but you and Splinter and John the Baptist crawl-fished out of the deal."

"Thasso?" grinned Bob. "Well, I reckon we'll drift back to the ranch and kinda relieve the doctor. 'F yuh hear of any good evidence, lemme hear it, will yuh, Chet?"

"I will, like ——!" retorted the sheriff.

Barr Wyeth was going from the corral to the house when Windy and Mark rode in that afternoon and motioned for him to stop.

"Didja hear the news?" asked Windy.

Barr shook his head.

"Somebody shot John the Baptist this mornin' and robbed him of eight thousand dollars."

Barr stared at them wonderingly.

"You ain't jokin', are yuh, Windy?"

"Honest to ——, I ain't, Barr."

And then Windy proceeded to tell Barr all he knew about it.

"About nine-thirty, eh?" mused Barr thoughtfully.

"About that time," agreed Mark, and added, "There's a lot of talk goin' on, and I reckon they mean you, Barr."

Barr laughed shortly and a deep furrow grew between his eyes.

"You wasn't over there, was yuh, Barr?" asked Windy.

Barr nodded.

"Yeah, and that's the —— of it—I was."

"Does anybody know it?"

"Yeah—Ma Fann."

“And she’ll head to Bob Kern.”

“I reckon so. I must ’a’ left there just at the right time to meet the old man.”

“You ain’t got no alibi?” queried Mark.

“No. Ma Fann was the only one that seen me. I was back here at a little after ten o’clock, but that won’t help me with a jury.”

“Maybe you better do a little runnin’,” suggested Windy. “If the old man dies—yuh can never tell what folks might do, Barr.”

“If I run, it’ll look like I’m guilty.”

“And if yuh stay you’ll look like a corpse,” added the practical Mark. “I’d run, y’betcha.”

Barr turned and went to the house. Mrs. Wyeth had seen him conversing with the two punchers, and she knew from the expression on his face that something was wrong. He came up and put a hand on her shoulder.

“Nell, your father was shot this mornin’ and robbed of eight thousand dollars.”

“Shot?” she gasped. “Not dead, Barr?”

“No, he’s alive. It happened in the cañon about half-past nine this mornin’.”

“My God! Who did it, Barr?”

Her face went white and she grasped him by the sleeve.

“I reckon they think it was me,” he said softly, “and I can’t prove it wasn’t.”

“You? Why, Barr, you couldn’t do that!”

Barr shook his head.

“No, I couldn’t, Nell; but you know what happened yesterday.”

He drew away from her and leaned against the wall.

“I’ve drank and gambled away the Lightning. Buck Kelly owns it—not me. I’ve been a —— fool, Nell, and I reckon I’m gettin’ what’s comin’ to me.”

“Don’t say that, Barr,” she begged tearfully. “How badly was my father hurt?”

“I don’t know. Windy said he’d probably live. I don’t know much about it, Nell—only what they just told me.”

“But can’t you prove that you didn’t do it, Barr?”

“No,” Barr shook his head slowly, “I can’t, Nell; but I may be able to prove who did. There’s no use of me trying to alibi myself. I can see where I’m up against it good and strong, unless I can slap the deadwood on the man who did do it—and make him admit it.”

“Have you any idea, Barr?”

Barr smiled and nodded.

“Yeah, I’ve got an idea, but I don’t know whether it’ll work or not. I’m goin’ to Bunch Grass and take a long chance on it, Nell.”

“A long chance, Barr?”

“Yeah—mighty long. Can’t wait here, don’t yuh see? Mebbe, it’s only a bluff, but a bluff is only good when yuh beat the other feller to it.”

“But they’ll put you in jail, Barr.”

“I don’t think so.”

He went down the steps and turned to her.

“If my bluff don’t work, Nell—” He hesitated and hitched up his belt —“I won’t go to jail, because I haven’t a Chinaman’s chance in there. I’m the same as convicted right now. Don’tcha worry about me nor about yore dad. He’s still alive and I’ve got a runnin’ chance.”

She watched him saddle his horse and ride toward town; watched him in a dumb sort of a way, as if she had no interest in him any more. She could not realize that her own father had been shot; possibly fatally, and that Barr was believed to have done it. Windy and Mark were coming up to the porch and she stared at them, as if they were total strangers to her.

“Where’s Barr goin’?” asked Windy, and she shook her head dumbly in reply to the question.

“If he ain’t a darned fool, he’ll beat it into the hills,” declared Mark. “If the old man dies, which he’s liable to do——”

Mrs. Wyeth swayed and collapsed on the porch.

“You —— fool!” wailed Windy. “The old man is her father!”

They ran up the steps and looked at her. Her face was white and her body was very limp, as Windy tried to lift her.

“Help me, yuh danged fool!” he grunted. “We’ve got to get her into the house.”

They managed to get her on to a bed and placed a pillow under her head.

“Now what do we do?” breathed Mark anxiously. “What do yuh give ’em in a case like this?”

Windy scratched his head thoughtfully.

“I dunno. Only two remedies I *sabe* are horse-liniment and castor-oil.”

“Don’t they pour water on ’em?”

“Yeah. Go and git the bucket, Mark.”

Mark departed to the kitchen to get a bucket of water, but Mrs. Wyeth’s eyes opened and she stared wonderingly around.

“You jist take it easy, ma’am,” advised Windy. “Mark’s gone after the water-bucket.”

“What happened?” she asked weakly. “Did I faint?”

“Yeah, I reckon that’s what it was. How do yuh feel now?”

“I’m all right now. I guess I just got dizzy.”

Mark stopped in the doorway and set down his bucket of water.

“Reckon yuh can git along all right now, ma’am?” asked Windy.

“Yes, I am all right now. Thank you both very much.”

“Yo’re welcome,” said Windy, and he and Mark went out through the kitchen, leaving the water-bucket.

Judge Henry Freeman was badly crippled in the legs from rheumatism, but was still able to continue his duties as district judge. He lived in a little house at the outskirts of Bunch Grass; prolific in his profanity, ready to argue anything from Blackstone to how to cure baldness, and smoking a very vile old pipe, which, when burning properly, sounded like eggs frying in a hot skillet.

He was a small man, with a long nose, abnormally bright eyes and a broad forehead. His hair was very thin, except in the back of his neck, where it grew down over his collar and started back up again in an attempted curl, or possibly trying to loop-the-loop. On or off the bench his tongue was as pointed as a rapier, but none could say that he was not impartial in his decisions—and just.

Just now he was hunched down in his easy chair, deep in thought. A few minutes before Buck Kelly had left him, after telling the latest news, and

the judge was trying to digest the facts impersonally. Kelly had not told him which way the finger of suspicion was pointing, nor did he divulge the fact that the sheriff had gone out to try to save money for John the Baptist. And while the judge pondered, his housekeeper, Mrs. Letts, a very fleshy, middle-aged woman, admitted Barr Wyeth to the judge's presence without advice from the judge.

"Mister Wyeth would see you, judge," she said, after Barr was already inside the room.

"He would, would he?" retorted the judge. "My ——, woman, how many times do I have to tell you that—oh, well, go on out and let me talk to him in private. Sit down, Wyeth—go out, Mrs. Letts."

Mrs. Letts faded out and shut the door rather hard. The judge frowned and threw his pipe on the littered table.

"Well?" He turned and faced Barr. "Go ahead."

"You heard about John the Baptist, judge?"

"Umph! A little. Probably distorted. Always is. Never knew two men to tell the same story. Go ahead."

"Judge, I want to tell you a little story. Yesterday I had trouble with John Fann."

"Tried to kill him with a whisky bottle, didn't you? I heard about it. Likely heard it all wrong. Go ahead."

"I thought I had killed him, judge. When I found that I hadn't I——" Barr hesitated—"I was glad."

"Umph! Queer, —— queer! Go ahead."

"I have hated John Fann, judge. He has said some mean things about me, and they hurt. You know I married his daughter against his wishes, and neither of us have ever been to see them since."

"—— foolishness!" growled the judge.

"This mornin'," continued Barr, "I rode over to the JHF to have a talk with John the Baptist. No, I didn't go over there to quarrel with him, judge; I wanted to make peace with him.

"But he wasn't home; so I came back down the road, thinking that I'd come to town and find him, but decided not to. I rode out of the cañon, intendin' to cut across the hills to my own ranch. I was takin' my time, and

after I got out of the cañon I got to thinkin' that I'd better go on to town and find him.

"I swung around the rim of the cañon, intendin' to hit the road where it comes out into the valley, when I heard a shot. I didn't think much about it right then, but before I hit the road a man rode past me, and he was sure goin' fast.

"I was back in the mesquite and he didn't see me. I stopped and done a lot of wonderin' why he was foggin' along so fast. From where I was I could see a long ways down the road and this man kept lookin' back. About half a mile below me the road curves to the right, and I seen this rider swing off the road and head into the mesquite.

"I've just about made up my mind that it ain't none of my business, when here comes another rider, goin' just about as fast as the other one was. He busted past me and I watched him until he made the curve, still follerin' the road. The last man was Bob Kern."

"What time was this?" asked the judge.

"Between nine-thirty and ten o'clock."

"Umph!"

The judge scratched his jaw and reached for his pipe.

"Who was the first man?" he asked abruptly, turning his head as he reached for his pipe.

"Chet Gunning."

"The sheriff?"

Judge Freeman's groping hand missed the pipe, and he sat down without it.

"You mean to say that the sheriff——?"

"I ain't meanin' to say anythin', judge," interrupted Barr quickly, "but those are the facts."

"But why in —— would Chet Gunning shoot John Fann?"

"There's eight thousand dollars missing," reminded Barr. "That mortgage on the JHF."

"Hm-m-m," reflected the judge. "Bob Kern and Splinter Martin saw a man ride away from the place where they found John Fann. Could you prove that you were not that man?"

Barr shook his head.

"I can't prove anythin', judge."

"What size gun do you shoot, Barr?"

"A forty-four."

"And John Fann was shot with a forty-four."

The judge reached for his pipe and began filling it, when Mrs. Letts knocked loudly and stepped into the room.

"Mister Pell would like a word with the judge," she stated stiffly. "He's outside, and I would not let him into the front door without a word from you."

The judge grinned and sucked on his pipe.

"The human bulletin-board again."

"He's anxious to see you," volunteered Mrs. Letts.

"Send him in," nodded the judge, and as Mrs. Letts went out he turned the oil lamp down so low that it threw the room into a half-light. Barr was partly hidden by the back of his chair and the judge motioned for him to turn still further away from the light.

A moment later Pastry Pell opened the door and stopped on the threshold.

"Judge, I jist wanted to tell yuh that the doctor has come back from the JHF, and he says that John the Baptist ain't liable to live, and the sheriff has gone out to arrest Barr Wyeth, because there's a lot of talk of a lynchin', if old John dies, and the sheriff's afraid the old jail ain't strong enough to stop 'em if they start and——"

Pastry stopped to catch his breath, and at this moment Barr Wyeth got up from his chair and looked at him.

Pastry swallowed hard and his mouth formed an O.

"F'r ——'s sake!" he gasped and went right back through the doorway. A moment later the front door shut with a crash.

"That was the first time I ever heard Pastry Pell stop talking, when he had something to say," declared the judge.

"He said enough," Barr was anxiously staring toward the door. "I wonder what I had better do, judge?"

“Don’t ask me. Right now I’m legally unfit to even hear the case. I usually am, as far as that’s concerned; because everybody brings me their troubles just ahead of the court session, but if you want an honest opinion, Barr Wyeth—go a —— of a long ways from here in the least possible time. That’s about all I can see for you to do.”

“I wouldn’t have a chance in court,” declared Barr.

“No, not a chance. You’ve been a —— fool, young man.”

“You don’t think I lied to you about the sheriff?”

“No, but the jury would. You’re losing time, Wyeth.”

Barr turned and went out of the door. He mounted his horse and sat motionless for a while. Beyond him were the yellow lights of Bunch Grass. Lights were twinkling in the windows of the scattered residences. Just across the way from him was a tumble-down sort of a home and a tall barn. He could hear voices.

Two bulky objects were coming down the dusty street toward him and he instinctively moved his horse into the heavier shadows of an old cottonwood. It was two cows, and behind them came a boy, herding them. They turned in at the open gate and the boy panted wearily as he dragged the old, sagging gate shut behind them. A voice called to him from the house.

“Aw, ma, I got here as soon as I could.” The boy’s voice was changing, and ended in a shrill treble. “Old Spot, the danged old tramp, was plumb over in Cherry Cañon. I’m goin’ to put a toggle on her, y’betcha.”

“You hurry up and git ready f’r supper.” This in a woman’s tired voice.

“Is pa there?” yelled the boy.

“He’s eatin’ his supper, and if you don’t hurry——”

“Did he hear the news?” The boy ignored the implied threat in his eagerness to dispense information. “Bud Newell told me that old man Fann was jist about to die, and that there’s sure goin’ to be a lynchin’ in Bunch Grass.”

“You come in the house and quit screechin’ such things!”

Came the rattle of a tin wash-pan, the splash of water, as the boy performed his evening ablutions. Then:

“Ma-a-a! Say, ma—kin I go to it, if there is?”

But there was no reply, and the door shut behind the excited youngster.

“Even the kids,” muttered Barr aloud as he rode away from the cottonwood. “There’s only one place where I’m anywhere near safe, and I’m goin’ to take a chance.”

He swung his horse and went slowly back toward the main road.

The lights were turned low in the JHF ranch-house living-room. Ma Fann sat close beside the bed, watching for any sign of returning consciousness in John Fann. Bob Kern sat on the floor against the wall, knees drawn up to his chin. Beside him lay an old magazine, the cover of it littered with match-stubs, ashes and the remains of many cigarets.

Humped over in an old rocking-chair was Splinter, reading the endless list of testimonials in an old medical almanac.

“Doc ought t’ be back pretty soon,” he said softly.

“You’ve done said that a hundred times,” reminded Bob. “I dunno what he can do, if he comes.”

“Is it goin’ to ache yuh any place, if I say it again?” queried Splinter. “And there’s lots of things that you can’t see.”

Ma Fann smiled sadly. She was used to the good-natured bickering of the two cowpunchers. She knew that both of them were itching for action, and were only there to keep her company until the doctor came back from Bunch Grass.

Suddenly Splinter threw up his head and glanced back toward the door.

“Somebody comin’,” he stated and went to the door.

He peered outside and grunted softly as footsteps sounded on the porch. Then, through the open door came Windy Hart, carrying a blanket-wrapped bundle in his arms, and behind him came Mark Ells, similarly burdened. They squinted around the room and advanced softly to a couch, where they placed their bundles.

Every eye in the room had been upon them, but now they turned to see Nell Wyeth, standing in the doorway, her dark hair in a tangle about her white face. Ma Fann had got to her feet and was staring at the girl in the doorway.

“Them is the kids,” Windy broke the silence, as he indicated the bundles on the couch. “C’m on, Mark.”

They tip-toed out of the room and Nell Wyeth moved aside to let them pass. From one of the blanket-wrapped bundles came the soft wail of a child.

“Ma, I had to come,” Nell Wyeth’s voice started bravely enough, but broke into a sob at the finish.

Ma Fann was leaning forward toward her, seemingly half-dazed, hardly realizing that it was her daughter. Then she threw out her hands to her; the light of a mother’s love glorifying her tired old eyes, her face tense with emotion.

“Then, why don’t you come, you poor kid?”

Bob Kern did not look at them as they came together; he grasped Splinter by the sleeve, whirled him around and led him out of the house. They sat down on the steps, and Splinter swore piously.

“What’sa matter, cowboy?” queried Bob. “You got a bad cold in yore head?”

“I—I’ve got the same kinda hay-fever you’ve got,” retorted Splinter. “I reckon she didn’t think Ma wanted her?”

“Ma,” said Bob softly, “Ma’s a dinger.”

From the house came the sound of voices talking softly, excitedly.

“Makin’ up for lost time,” said Bob. “Gotta lot to wau-wau about. I wonder what Barr Wyeth thinks about it?”

Splinter laughed.

“I was just thinkin’ about Windy and Mark,” he explained. “Think of them two salty old pelicans packin’ a baby per each plumb from the Lightnin’.”

“More company comin’,” remarked Bob, “and it ain’t Doc Knowles.”

A solitary horseman, indistinct in the moonlight, had turned off the main road and was riding up through the yard toward them. He dismounted fifty feet away and came slowly up to them. It was Barr Wyeth.

Bob got to his feet. He did not know what Barr Wyeth’s intentions were, and was taking no chances.

“I’m packin’ a white belt,” said Barr, using the old Indian peace greeting.

“All right,” nodded Bob. “We’re takin’ your word for it, Wyeth.”

Barr came closer and peered at the house.

“How’s the old man?” he asked.

“Lord knows.”

“Still alive, though?” hopefully. “I just——”

Barr stopped. He had heard his wife’s voice and he looked inquiringly at Bob.

“She just got here,” explained Bob. “I dunno why she came. Windy and Mark packed the kiddies for her.”

“I wonder if I could go in there, Kern?”

“Well, I dunno why not.”

Bob turned and walked up to the door with Barr close behind him. Ma Fann and Nell Wyeth were standing close to the bed, their arms around each other, looking down at John Fann.

Then they both turned and looked at Barr, who was awkwardly twisting his sombrero and looking down at the floor.

“Barr!” Nell Wyeth started toward him, but stopped. “Barr, I had to come.”

“Tha’sall right,” he muttered. “So did I.”

She crossed the room and took him by the arm.

“Barr, the sheriff came just as we were ready to leave. He wanted to know where you were and I—I had to tell him that you were in town.”

“Yeah, I was in town,” said Barr slowly, “but it never done me no good, Nell.”

Splinter came in and shut the door.

“I ain’t got much of a chance,” said Barr. “Folks have kinda got me convicted already; so I reckon I’ll just have to drift, if——” he glanced around at Bob and Splinter—“if you two ain’t goin’ to take the law in yore own hands.”

Bob shook his head.

“It ain’t for us to say, Wyeth—except that we’re sorry.”

Barr smiled bitterly.

“That sounds nice, Kern, and I ought to thank you, but I can’t help rememberin’ that you said that you’d see the day that Barr Wyeth was

driven off this range, and that Nell would be sorry that she turned yuh down on account of yore crooked face.”

Bob started forward, his hands clenched at his sides.

“That’s a —— lie, Wyeth!”

“Is it?” Barr smiled crookedly. “Well, what’s the odds now. You hated me because I won your girl, Kern; and maybe I don’t blame yuh. After all, yore crooked face would have been better for her than my crooked soul.”

“Barr, what are you saying?”

Nell’s face was ashen and her hands clawed at his shoulders.

“Well, I can’t say anythin’ worse about myself than Bob Kern and the JHF outfit have said about me.”

Bob’s face was white with passion and his eyes gleamed yellow in the lamp-light, as he moved slowly toward Barr Wyeth. Barr moved back until he was against the wall near a window.

“Wyeth,” Bob’s voice was icy cold, “I have never said a word against you—as God is my judge, but right now I’ll say that yo’re a yaller-hearted quitter. You ain’t got the guts to fight for yore wife and babies. You want sympathy, don’tcha? Well, yuh won’t never git it by hurtin’ yore wife’s feelin’s.”

Barr laughed, but there was no mirth in it.

“The hero makes his speech,” he said sarcastically.

Behind them the door had opened slowly and they glanced back to see the sheriff framed in the doorway, a six-shooter in his hand. He was covering Barr Wyeth and paying no attention to the rest.

“I follered your wife, Barr,” he said triumphantly.

Bob relaxed and backed away. The sheriff shut the door with his foot.

“I hate to do this, folks; but it’s my duty. Barr Wyeth, I arrest you for attempted murder and robbery.”

Barr laughed, but did not move. The sheriff watched him narrowly, as he walked slowly forward.

“Yore duty, eh?” said Barr slowly. “What was you doin’ in the cañon at the time the old man was shot and robbed?”

“Me?” The sheriff stopped and the barrel of his gun wavered.

“Yes, you!” snapped Barr. “My word won’t be worth a —— against yours, but I want to tell you that you’ll never send me to the penitentiary for somethin’ you done yourself.”

As Barr finished his accusation, he whirled and dived head-first out of the window, smashing the glass and splintering the frame. It was so sudden and so unexpected that for several moments no one moved. Then the sheriff turned and sprang to the closed door. Yanking the door open, he ran on to the porch.

A man appeared to be just mounting a horse beyond the steps, and the sheriff was taking no chances now. His gun spouted fire once—twice—three times. The horse reared sideways, snorting wildly, but the rider swung on to the saddle, firing across the cantle at the sheriff. Twice his gun roared defiance at the sheriff, and then the horse whirled and sped away in the darkness.

From the porch came the gasping cough and the sheriff sprawled back half-way through the door. Bob sprang outside, gun in hand, but only the diminuendo of galloping hoofs came to his ears. He turned back to the sheriff and lifted his head.

“Hurt bad?” asked Splinter, moving in close.

“Too dead to skin,” replied Bob softly.

Ma Fann and Nell Wyeth moved over toward the door, dazed from the swift turn of events, and Bob turned to Mrs. Wyeth.

“Barr had t’ do it, I reckon. I don’t figure that the sheriff had any right to start shootin’ thataway. There wasn’t nothin’ but circumstantial evidence, noways.”

“He’s dead?” whispered Nell Wyeth, pointing at the sheriff. “Barr killed him?”

“Yeah, he’s dead, I reckon.”

Nell Wyeth turned and groped her way to a chair, where she sank down, staring with unseeing eyes at the carpet. Ma Fann went to her and knelt down beside the chair, while Bob and Splinter looked at each other across the body of the sheriff.

“Doc ought to be here pretty soon,” said Splinter.

“My ——, yore gettin’ to be some conversationalist,” observed Bob. “I hope he does come, so yuh can find a new remark to make.”

Came the rattle of loose buggy-spokes, the gritting of iron-tired wheels, and the doctor drove his buggy team up to the front porch. Bob stepped across the sheriff's body and met the doctor at the bottom step.

Quickly he told the doctor what had happened, but before the tale was half-finished the doctor pushed past him and went inside. He knelt down beside the sheriff and gave a swift examination.

"No chance, is there, doc?" asked Splinter.

"No. Probably never knew what hit him."

Doctor Knowles got to his feet and turned toward the bed.

"What'll we do with him, doc?" asked Bob.

"Take him to my office. We'll have to hold an inquest."

The doctor turned back to the bed.

"We'll hitch up the wagon-team, Splinter," said Bob, and then to the doctor. "Didja meet anybody on the road, doc?"

"No."

The two cowboys went outside and down to the barn.

"Wyeth's a goner —— sure," observed Splinter.

"Yeah, it looks like it," agreed Bob wearily, "but I'd give a lot to know what he meant about the sheriff bein' in the cañon at the time John Fann was shot. They'll just about put the deadwood on Barr Wyeth now and lynch him."

"Could that 'a' been the sheriff we seen leavin' old John?"

"Yeah, it could 'a' been—but was it? The sheriff will never tell, and they won't give Barr Wyeth a chance to tell his story, I don't suppose."

The inquest over the remains of Chet Gunning drew the range people from even the remote parts of Bunch Grass Valley. The news had traveled swiftly, and the town of Bunch Grass seethed with saddle-horses and rigs of every description.

Nell Wyeth was not called upon to testify, and Ma Fann was only called upon to corroborate Bob and Splinter's testimony, after which she was hurried back to the bedside of John Fann, who was still unconscious.

Doctor Knowles, who was also coroner, conducted the inquest, with the assistance of Andy Allard, who had automatically become sheriff. Andy's

jaw was badly swollen from an ulcerated tooth, which Doctor Knowles refused to extract, and he was altogether a miserable sheriff.

The testimony was brief and the jury needed no deliberation to bring in a verdict to the effect that Chet Gunning had met his death from gun-shot wounds inflicted by Barr Wyeth, who was resisting arrest.

Buck Kelly seemed to breathe easier now that the sheriff was out of the way. He was afraid that the sheriff might be called upon to tell the truth, and the truth might be damaging. The inquest made good business for him, and he was very well satisfied with the way things had turned out.

Much liquor was consumed, and men who had never hesitated in speaking ill of Chet Gunning, now spoke glowingly of him; which is the way of humanity. Andy Allard growled like a wounded bear and insisted on talking with a finger in his mouth, telling disinterested listeners just where his teeth hurt the most.

Bob Kern said little, although many questioned him after the inquest. He wondered deeply over Barr Wyeth's accusation, and there grew a doubt as to Barr's guilt. Buck Kelly had said that only three men knew of the mortgage—Judge Freeman, John Fann and himself. Judge Freeman was above reproach; Buck Kelly had not done it himself.

Who else knew about it? Bob felt sure that robbery had been the motive, and the robber must have known of the mortgage money. Andy Allard came to Bob and drew him aside.

"Awgl huh dawg docl glawf," said Andy, with a forefinger shoved inside his aching mouth.

"I'll betcha," agreed Bob seriously. "I knowed a man who died after havin' a ulcerated tooth."

"Thasso?" Andy's face grew grave. "My gosh! How long after, Bob?"

"Six 'r seven years."

"Aw-w-w!" Andy grated his displeasure of such levity, and his forefinger prodded the point of pain. "Arr-r ug glawf-f-f duddang it!"

"You ought t' go to Russia," said Bob. "Mebbe they can *sabe* yore wau-wau—I can't, Andy."

"Um-m-m," said Andy painfully. "I wanted to ask yuh somethin', Bob, but every time I start t' ask it this —— tooth starts hoppin'. Will yuh take

the job as deppity like I was before I got all this responsibility wished upon me?”

“Be a deputy-sheriff?”

“Yeah. It ain’t no —— of a good job, but somebody’s got to do it. Pays a hundred a month, Bob—and do yore own dodgin’. I’ve gotta catch Barr Wyeth, I suppose.”

“And yuh want me to catch him, eh?” queried Bob.

Andy nodded and caressed his jaw.

“Yeah.”

“Man huntin’ don’t appeal to me, Andy,” seriously.

“Me neither,” confided Andy. “I’m takin’ a chance on Barr fillin’ me with lead, and if I do nail him alive, these snakehunters’ll want to lynch him and I’ll git leaded up in tryin’ to be a hero and protect him.”

“Maybe he’ll leave the country, Andy.”

“Yeah,” wearily, and the finger went back inside his mouth. “Awgl gosh dagl.”

Bob left Andy talking to himself, and went in search of Splinter. Ordinarily Bob would have jumped at the chance to become a deputy-sheriff at one hundred dollars per month, but just now the job did not appeal to him.

He found Splinter in the Buck Horn saloon, backed against the bar, tears running down his face. Splinter was gloriously drunk—crying-drunk. It was not often that Splinter looked upon the wine when it was red, but when he did he made a thorough inspection. Bob looked him over and went back to the hitch-rack. He took Splinter’s horse to the livery stable and rode back toward the JHF alone.

At the spot where John Fann had been shot, he stopped his horse and tried to reconstruct the scene as he remembered it. John Fann had been shot from the left side of the road, or from the rear. He had evidently been allowed to pass the ambush and shot without any warning.

Bob dropped his reins and walked back from the spot. On the left side of the road the brush grew heavy and there was plenty of cover to conceal a man and a horse. The ground was so dry that it was impossible for him to find the imprint of a man’s boot, but in the mold of a rotten log he found an

imprint that caused him to shake his head. It was the print of a shod hoof—with a bar-shoe.

Bob went back to his horse and swung into the saddle. If Barr Wyeth was innocent, why had he ridden into that thicket? To the right of the road there was little brush, but beyond that a fringe of timber extended up the side of the cañon. Bob rode slowly in that direction, crossing the narrow gravel-wash of the dry creek bed.

An old cattle trail wound down through the timber, worn deeply from the passing of many animals, and Bob headed up this trail, watching closely. About half-way to the rim of the cañon he found another bar-shoe track, pointing up the trail.

He rode out over the top, where the trail ended. Here was a wide level expanse, almost bare of grass, and the bar-shoe tracks were very plain: Here the rider had turned the horse around, possibly to look back into the cañon, but had turned around and headed straight toward the Lightning ranch.

A flash of sunlight on metal attracted Bob's attention and he dismounted to pick up an empty cartridge shell. A glance showed him that it was a forty-four caliber revolver cartridge shell.

"Stopped here to look back," mused Bob, "and reloaded his gun. Hm-mm!"

His brows drew down in a heavy frown, as he examined the cartridge shell. He drew his own gun, extracted a cartridge and tried to insert the empty shell, but it would not fit. Then he put the shell in his pocket, rolled a cigaret and started across the hills, trying to trail the tracks of the bar-shod horse.

For about a mile the trail was plain to Bob, but a herd of cattle had obliterated it at the head of a cañon and Bob was unable to pick it up again. He was about to turn back toward the JHF, but an idea seemed to strike him and he rode back toward Bunch Grass town.

Splinter Martin was enjoying the fullness of things—mostly his own. He had quite recovered from his earlier melancholy outlook, wiped away his tears and had started out to do big things in the world.

Splinter was fat, with the waddling walk of a duck, and he required much room. In fact, the Buck Horn was much too small for him; so he went into the street. The crowd had dwindled away and Splinter gazed reprovably upon several cowboys who were just leaving.

“Tha’s just m’ luck!” he wailed. “Nobody cares what b’comes of me-e-e! Gonna be lef’ all a-lone. Everythin’ goin’ out and nothin’ comin’ in. Oh, o-o-o-oh!”

A strange cowboy riding a jaded gray horse passed him and dismounted at the hitch-rack. He was a skinny sort of a person, dust-covered, long-nosed and watery of eye. Splinter looked him over with approval.

“Brother, we welcomes yuh,” greeted Splinter, with an expansive gesture. “The keys of our fair city are yours and they just held an inquest over the re-mains of the sheriff. Go as far as yuh like, but come back in time to have a drink.”

The strange cowboy grinned widely and hitched up his belt.

“What town is this, pardner?”

“This here?” Splinter stumbled slightly and looked around at the street. “This here town is Bunch Grass. She’s rawhide warp and bob-wire fillin’; guaranteed not t’ bend, break, rust, rumble nor rattle. Take it ’r leave it, and no questions asked.”

“You kinda like it, don’tcha?” grinned the cowboy.

“Like it ——!” exploded Splinter. “I love it.”

The cowboy laughed and considered Splinter.

“Mebbe you can tell me where I’ll find the Ten-Bar-B outfit?”

“Uh?” Splinter squinted thoughtfully, but shook his head. “It ain’t in no jog’fee I ever studied, pardner.”

“You ain’t lived here long, have yuh?”

“Ain’t I?”

Splinter balanced himself carefully and pointed at the hills beyond the town at the foot-hills.

“See them hills? Well, sir, when I came here that was the highest part of the Rocky Mountains.”

“Yeah?” The cowboy grinned. “Shrunk, ain’t they?”

“Shrunk ——! I wore ’em off driving cows across ’em. Let’s have a drink.”

“All right.” The cowboy seemed willing enough. “I’m headin’ for the Ten-Bar-B.”

“Many happy returns of the day,” said Splinter, “but I never heard of no Ten-Bar-B outfit.”

They went into the Buck Horn and leaned against the bar. The stranger had a thirst, and after about seven man-sized drinks he tried to sing a song, but Splinter vetoed it sharply.

“Don’t shing.”

“Don’t shing?”

“Not a shong.”

“Aw right,” reluctantly. “I c’n shing good.”

“Zasso? Where ’r you from, Mister Shinger?”

“Wyomin’. And I’m lookin’ for the Ten-Bar-B outfit.”

“You remin’ me of the feller that got on his horsh and went huntin’ for the moon,” grinned Splinter. “And the —— thing fell on him.”

“The moon did?” wonderingly.

“No—the horsh.”

“Aw-w-w, ——!” The stranger helped himself to another drink. “That Ten-Bar-B outfit’s near here.”

“Is zasso?” Splinter wiped the back of his hand across his lips and reached for the bottle. “’F it is, it moved in this mornin’, pardner.”

“My name’s Mellody.”

“Oh, ex-cuse me. No wonder yuh wanted t’ shing. Mine’s Martin. Folks calls me Splinter ’count of my shape. Now Mister Mellody, since we’ve been properly introduced, I don’t mind tellin’ yuh that you’ll go cock-eyed tryin’ to find that Ten-Bar-B in Bunch Grass valley. It jist ain’t, tha’sall.”

Splinter delivered this opinion and looked around, just as Bob Kern came in through the doorway.

“Hey, Bob! C’m here. Want yuh to meet Mister Mellody, the whippoorwill from Wyomin’. Mister Mellody, this is Mister Kern, dangerous but passable.”

Bob shook hands with the cowboy, who wanted to buy a drink, but Bob refused gracefully.

“Mister Mellody,” said Splinter, “is lookin’ for the Ten-Bar-B ranch.”

Bob smiled.

“Never heard of it, Mellody.”

“Thasso?” Mellody squinted down at the floor. “Tha’s real funny, y’betcha.”

“Do we laugh at yuh or with yuh?” queried Splinter.

“At me, I reckon. Yuh see, I’ve been workin’ for the Diamond-Dot outfit near Searchlight. Old man Himes owns the ranch, and he’s a slicker on buyin’ stock, y’betcha.”

“Buys cheap, eh?” asked Bob.

“Dang right. That’s how I finds out about this Ten-Bar-B outfit. The feller what owns it drives about three hundred head over into our range and sells most of ’em to old man Himes. He said that the range was plumb burnt out over here, and he was willin’ to sell cheap to git rid of ’em.”

“Yeah?”

Bob moved in closer and nodded to the bartender to set out the glasses.

“Yeah,” nodded Mellody. “I had a run-in with old man Himes, and quit. This here Ten-Bar-B *hombre* talked a lot about his place over here; so, when I got out of a job, I drifted over to see if he could use me.”

“Said it was near Bunch Grass?” queried Bob.

Mellody gulped his liquor and nodded.

“Anyway, I sure as —— understood it thataway.”

“Didn’t say what his name was, did he?”

“Smith. We all called him ‘Windy,’ for short, ’cause he talked quite a lot.”

“There ain’t no Windy Smith around here,” said Splinter, shaking his head. “Leave it to Buck Kelly, if there is.”

Buck was coming in behind the bar from the rear of the room, and he looked inquiringly at Splinter.

“Here’s a pilgrim from Wyoming, Buck,” explained Splinter, “and he’s lookin’ for the Ten-Bar-B, which is run by Windy Smith. You ever heard of it?”

Buck frowned and squinted at Mellody.

“We’re provin’ it by you, Buck,” said Splinter, grinning.

Kelly shook his head.

“I never heard of the place.”

“’S —— funny,” Mellody shook his head and reached for the bar-bottle.
“Anyway, I ain’t worried a heap. Mebbe I can git me a job.”

“Would yuh know Windy Smith if yuh seen him?” queried Kelly.

“Y’betcha. Well, here’s to yore old sun-bonnet.”

Kelly drank with them and walked back to the poker game, where he sat down. Mellody was beginning to get very intoxicated and Splinter began to cry softly; so Bob made a sneak out the front door and started across the street, when Doctor Knowles drove up to the front of his office. Bob went over to him and the doctor was grinning widely.

“John the Baptist woke up,” he informed Bob. “I was afraid it might have affected his mind, but he’s as clear as a bell. Had to swear at him to make him stay in bed.”

“By golly, that’s fine!” applauded Bob. “Yo’re some doctor. Betcha some of them city doctors would ’a’ killed the old man. He didn’t say anythin’ about seein’ the feller that shot him, did he?”

“He didn’t even know what happened to him, Kern. Don’t remember a thing. Was just ridin’ along, when something hit him a terrible blow.”

“Knows he got robbed, don’t he?”

“Yes. I guess it hurt him more than the bullet, but he didn’t say anything.”

“No, he wouldn’t beef about it,” agreed Bob warmly. “Are they goin’ to bury Chet Gunnin’ tomorrow, doc?”

“Yes; in the afternoon.”

“Will yuh do me a favor, doc?”

“Why, I think so, Kern; what is it?”

“Before yuh git ready to bury Chet, will yuh cut out one of them bullets and let me see it?”

“Sure. What’s the idea, though?”

“Kinda curious, doc. Yuh see, we don’t know just what did kill him. Them holes are there, but we dunno what is inside of him.”

"I see," admitted the doctor. "Well, that might be a good idea, Kern. I'll have the bullets for you in the morning."

"That's kind of yuh," nodded Bob. "S' long, doc."

Bob went back to his horse. He knew there was no use of trying to get Splinter to go back to the ranch, so he rode away alone, wondering who Mellody was and what or where was the Ten-Bar-B outfit. Bob knew every brand in the county, and there was no such iron used on any of the ranches.

He rode back to the JHF and stabled his horse before going into the ranch-house to see John Fann. Nell Wyeth met him on the porch, anxious for the latest news.

"Ain't heard a word," stated Bob softly. "Nothin' been done yet."

She nodded dumbly and turned back into the house. John Fann was propped up in bed and he grinned widely at Bob.

"Caused some excitement, didn't I, Bob?"

"Yuh sure did, John. How are yuh feelin'?"

"I'm feelin' fine."

"Well, you take it easy," advised Bob, drawing up a chair. "Doc Knowles tells me that you ain't got no idea who shot yuh."

John Fann shook his bandaged head.

"Never knew I was shot until they told me."

"Been a lot of things happenin'," observed Bob.

Nell Wyeth had stopped near the center of the room, but now she turned and went into the kitchen. John Fann's eyes followed her and he shook his head sadly.

"Poor little girl. It's a hard row of stumps for her, Bob."

"Yeah," nodded Bob, "she ain't had a square deal."

"Too much hate mixed up in it all," sighed John Fann. "I have never said one word against Barr Wyeth, yet they hate me for the things I have said."

"That's right," agreed Bob. "Accordin' to Barr, I've said some danged mean things against him and Nell, but I never said 'em, John."

John Fann shook his head thoughtfully and leaned back wearily on his pillow.

"Where's Splinter?" he asked.

"He's in town. The strain was too much for him, John."

“Drinking? I often wonder what would happen to Splinter if he didn’t get drunk once in a while. Did you boys bring in any of the stock yet?”

“Not yet, John. There has been too much happening lately. Did you ever hear of the Ten-Bar-B outfit?”

“No, I don’t think I ever did, Bob.”

Bob explained about the cowboy from across the line, who was looking for such an outfit.

“Must be a Wyoming register,” said John, “I don’t remember of ever seein’ it in the Montana register. Likely got his directions mixed.”

“Yeah, I reckon he did,” agreed Bob doubtfully, “but the rest of his stuff kinda pointed toward this range. I’m goin’ to have another talk with him, if he don’t leave too soon.”

Bob got up and turned back toward the door, as Ma Fann came out of the kitchen and joined him. She walked out to the horse with him.

“Have they started hunting for Barr?” she asked softly.

Bob shook his head.

“I don’t think so, Ma. Andy wanted to give me the deputy job, but I didn’t take it. I wasn’t goin’ back to town tonight, but I think I will. Feller down there that I want to see.”

“Nell’s almost crazy over it, Bob. She just walks around and don’t say anything, except to wonder what has been done. Find out everything you can, will you, Bob? And let her know about it?”

“Yeah, I’ll do that, Ma. Barr’s had a good chance to make a long getaway, and I sure hope he keeps away.”

Bob swung on to his horse and turned toward the gate just as Pastry Pell, his horse reeking from a hard run, swung off the road and galloped up to them.

“Say!” he blurted. “Splinter shot that Wyomin’ cowboy a while ago, and they’ve got Splinter in jail!”

“Splinter shot him?” exclaimed Bob. “Shot Mellody?”

“Yeah, I think that’s his name.”

“For ——’s sake, what for, Pell?”

“Over a poker game. They was both drunk. Andy Allard put Splinter in jail.”

“For Heaven’s sake, what will happen next?” said Ma Fann wonderingly.

“A lot depends, Ma,” said Bob grimly. “I’ve got to see Splinter first.”

“I’ll ride back with yuh,” offered Pastry Pell, but Bob had spurred his horse into a run and Pastry’s horse was in no shape to make the trip again at that speed.

Bob was riding wild and with no purpose in his mind, except to hear the story from Splinter’s own lips. It was not like Splinter to do a thing like this, especially when he was drinking. Liquor only served to make Splinter more congenial. And Splinter did not care for poker.

Bob jerked his horse to a panting stop at the Buck Horn, dismounted and strode inside. Buck Kelly was at the bar, talking to Andy Allard, and he squinted closely at Bob as he strode up to them.

“Talk a little, Buck,” advised Bob hoarsely. “I want to get this whole story in a few words.”

“Well,” Buck smiled faintly, “I guess I can tell it to you in a few words. The strange cowboy wanted to play poker and he sort of hoodled Splinter into the game. They were both drunk and I didn’t want to play with them, but they insisted.

“Only a few hands were dealt, when Splinter kinda fumbled with the discards. The stranger called him for it and then Splinter went for his gun, or acted like he was goin’ to, and the stranger reached for his gun. Splinter shot first.”

“And Splinter goes to jail for it, eh?” queried Bob.

“Well—” Buck spread his hands helplessly—“the stranger accused Splinter of cheating, and Splinter drew first.”

“Don’t blame me,” wailed Andy, “I had t’ do it. Between gun-fights and this —— tooth of mine, I’ll be crazy in another day.”

Bob squinted one eye at the mirror and rubbed his chin violently.

“Can I have a talk with Splinter, Andy?”

“Yeah—sure. I reckon he’s sobered up a lot. C’m on.”

“Who else seen this shootin’, Buck?” queried Bob.

“Well, I happened to be with them at the table; the bartender was up near the front window, and Pastry Pell was just comin’ in the back door.”

“All right,” nodded Bob and followed Andy out the front door.

“Was this Mellody person killed plumb dead?” asked Bob, as they crossed to the jail.

“No, he ain’t dead yet, Bob; but doc says he ain’t got a chance in the world.”

They went in through the sheriff’s office and Andy unlocked a cell door. Splinter was lying on a cot, smoking a cigaret; as unkempt a figure of a cowboy as could be imagined. His eyes were blood-shot, face dirty, but he grinned at Bob and motioned him to a stool.

“You sure went and raised ——, didn’t yuh?” said Bob reprovingly.

“That’s what they tell me,” agreed Splinter hoarsely, “but I don’t remember a danged thing, except——” He hesitated and closed his eyes for a moment. “Say, it’s —— funny that I can’t even remember playin’ poker.”

“You must ’a’ been pretty drunk.”

“Ke-rect. ’S a funny thing just the same.”

Splinter dug down in his pocket and drew out a twenty-dollar bill and a few cents in change.

“I had twenty-seven dollars when I started drinkin’. I figure I must ’a’ spent about seven dollars f’r hooch. What in —— did I buy poker-chips with? You know dang well that Buck don’t play against credit in his poker games.”

“Yuh sure that’s all yuh had?” queried Bob.

Splinter laughed wryly. “Cowboy, I ain’t no book-keeper, but I sure *sabe* my own finances.”

“But can’t yuh remember nothin’, Splinter?”

“Not much. There was a poker game, Bob; I remember that much, and I remember settin’ down in a chair. Then I kinda remember that somebody came in and I heard Mellody speak to him.”

Splinter shook his head helplessly.

“Buck sure sells bad hooch. I remember that shot. It kinda woke me up, and the next thing I knowed I was bein’ slammed around, and then I’m in jail, with Andy explainin’ to me that I’ve killed Mellody.”

“Uh-huh,” reflected Bob. “And Mellody spoke to somebody, did he?”

“Aw-w-w, I’ll be —— if I know, Bob. I think he did. You know how hazy things git when yuh drink a lot.”

Bob turned to Andy—

“You got Splinter’s gun, didn’t yuh?”

Andy nodded slowly.

“Yeah. One cartridge had been fired. It’s out in the desk, if yuh want to see it, Bob.”

“Never mind. I’m goin’ over and talk with Doc Knowles. Take it easy, Splinter.”

“That’s —— good advice,” said Splinter dryly.

Bob went up the street and into Doctor Knowles’ office, where he found the doctor in a chloroform scented atmosphere.

“Is that cowboy still alive, doc?” he asked.

“Yes, he’s alive yet, and I think he’ll pull out of it, but he sure had a close call, Kern. The bullet skidded on a rib and missed his heart. He’s tough. The shock of the bullet almost killed him. What’s got into this country?”

Bob shook his head.

“I dunno, doc. Didja take the bullets out of Gunnin’ yet?”

The doctor opened a drawer of his desk and took out a crumpled envelope, from which he took two lumps of lead. One was badly battered, but the other was almost in its original form. Bob looked them over closely and handed them back to the doctor.

“Keep ’em for me, will yuh, doc?” requested Bob. “Yuh never can tell when I’ll want ’em.”

“Certainly. Did you see John the Baptist?”

“Yeah, and he’s all hunkydory, doc. And yuh think that Mellody will pull through?”

“Unless I’m badly mistaken. He’s unconscious yet from shock and loss of blood, but he’ll pull through. He was soaked with whisky and I guess he never felt the pain of it, but he’ll yelp when he wakes up.”

Bob grinned and thanked him, as he went back to the street. Pastry Pell was just riding up to the hitch-rack and he waited for Bob to cross to him.

“You sure ride fast,” grinned Pastry. “Your dust ain’t settled yet, Kern.”

“No, and it ain’t goin’ to settle either,” said Bob meaningly.

Pastry trailed him into the Buck Horn, and Bob went straight to the crowd around the poker table.

“That cowboy ain’t dead, Buck,” he stated, “and Doc Knowles says he’ll live. I’ll buy a drink for the house.”

Nobody refused the invitation, and they lined up at the bar.

“Splinter was wonderin’ just how he stood in that poker game when it busted up,” stated Bob to Kelly. “He’s kinda hazy over it yet.”

Kelly scratched his nose and grew very thoughtful.

“Danged if I know, Kern. Splinter bought either five or ten dollars worth of chips, and I don’t know just how he stood. Anyway, I’ll give him a ten-spot, just to be on the safe side.”

“Tha’sall right,” nodded Bob.

“Is anythin’ bein’ done to catch Barr Wyeth?” questioned a cowboy.

Kelly laughed.

“I reckon everybody is waitin’ for the reward to be announced. Andy can’t get anybody to take the deputy job, and he ain’t got no jailer to take care of his prisoner now; so he’s kinda up against it.”

“I’m goin’ to take that job,” announced Bob seriously.

“You are?” laughed Kelly. “What’s the idea, Kern?”

“Just want to show off, I reckon,” grinned Bob. “Mebbe somebody’ll take a shot at me, I dunno.”

Andy Allard had come into the saloon in time to hear Bob’s declaration, and now he shoved his way to Bob’s side.

“You mean that, Bob?” he asked anxiously.

“Sure thing.”

Andy did a double-shuffle and slapped Bob on the back.

“Hurrah for our side! There’s fifteen hundred dollars reward for Barr Wyeth. The county offers a thousand and the State gives a measly five hundred.”

“Dead or alive?” asked a cowboy.

“For the arrest and conviction,” stated Andy. “Yuh can’t convict a dead man, can yuh?”

Kelly laughed shortly.

“Yuh might arrest him, but yuh never will convict him.”

“Why not?” asked Andy.

“After what he’s done?” queried Kelly. “You’ll have a —— of a time savin’ him for trial.”

“Maybe he never done it,” said Bob slowly.

“That would be hard to prove.”

“Yeah, it—might,” admitted Bob slowly. “Anyway, I hope this Mellody person lives.”

“What do yuh know about him?” asked Andy.

“Too danged little. It’s the things I want to know about him, Andy. I’m wonderin’ who told him that the Ten-Bar-B outfit was located here.”

“Whatcha want to find them for?” asked a cowboy.

“They sell their cows cheap,” explained Bob, “and I’d like to buy some stock cheap.”

“Mebbe the jasper that robbed John the Baptist had the same idea,” suggested Andy.

“I’ll ask him—some day,” smiled Bob, “and I don’t care whether he answers me or not. Let’s go over and talk to my drunken, gun-fightin’ bunkie.”

Bob and Andy started across the street, when Doctor Knowles came out of his office and motioned for them to come over there.

“Mellody is conscious now,” he stated, “and perhaps he can answer a few questions if you’ve got anything important to ask him.”

They followed the doctor into a bedroom at the rear of the house, where Mellody had been placed. He stared at the ceiling, muttering foolishly.

“Delirious again,” grumbled the doctor. “He was all right a minute ago. Asked about Splinter and a man by the uncommon name of Smith.”

“Yeah?” Bob was interested. “Say anythin’ else?”

“No, not much. Didn’t remember getting shot, I guess.”

Mellody’s clothes had been carelessly thrown on a chair, and one of the boots attracted Bob’s attention. He picked it up and looked it over. The boots were nearly new, but a chunk had been torn out of the edge of the sole, and above that, just at the bulge of the little toe, there was a decided crease in the leather.

Bob handed the boot to Andy and called his attention to the damaged sole.

“Looks like a bullet done that,” observed Andy. “It ain’t been done long ago either.”

Bob tossed the boot back on the chair and turned to the doctor—

“Let us know if he starts talkin’ sense, doc.”

The doctor nodded and they went back to the street.

“We’re goin’ back to the Buck Horn,” explained Bob, “and you let me do the talkin’, Andy.”

“’F you don’t, I won’t know what we’re there for,” grinned Andy.

There had evidently been much conversation regarding them, because the talk died quickly as they came in. Bob led the way over to the poker table and turned to Kelly.

“Buck, will yuh fix the chairs like they was at the time of the shootin’? We’ll need this for evidence when Splinter comes to trial, don’tcha see?”

“Sure,” agreed Kelly, and proceeded to place the chairs around the table.

“You was facin’ the back door, eh?” said Bob. “Mellody was facin’ the front door and Splinter was kinda between yuh.”

“Yes, that’s the way we were sittin’.”

“Did Mellody fall backwards when he was shot?”

“No-o-o, he fell forward on the table.”

“I see,” muttered Bob, as he drew a chair away and peered under the table.

Other men stooped and looked under the table, but Bob straightened up, a queer expression in his eyes.

“I reckon that’s all I wanted to know, Buck,” he stated and turned toward the door.

“What do you mean?” queried Kelly. “You talk like it wasn’t——”

“Got a right t’ talk, ain’t I?” demanded Bob. “I’m a deputy-sheriff.”

He laughed mirthlessly and went out the front door, while Andy plodded along behind him.

“Whatcha find out?” asked Andy anxiously, as they crossed the street.

“Lemme in on it, Bob.”

“My ——, don’t bother me when I’m knittin’!” exploded Bob. “I might drop a stitch.”

Bob went straight to a State map on the office wall and studied it closely. He drew a penciled line from Searchlight to Bunch Grass and compared it with the scale of miles on the map. Then he turned to Andy.

“Say, we ain’t a —— of a ways from Wyomin’, are we.”

“That,” said Andy disgustedly, “is a —— of a thing to hear yuh say, when I was looking to hear somethin’ worth listenin’ to.”

“Well, it ain’t much,” agreed Bob, “but it’s one of the stitches. Didja ever consider that Comanche Cañon might be an easy pass across the main divide?”

“I know danged well it is,” said Andy. “I’ve been up to the top, where I could look into Wyomin’. Why, it’s a railroad grade all the way. Betcha some day they’ll run trains through that pass.”

Bob nodded and studied the map again.

“What do we do now?” queried Andy.

“Oh yeah.” Bob scratched his chin thoughtfully. “Well, I suppose we might as well go out and arrest Barr Wyeth.”

“Zasso? Just like that, eh? Yuh don’t suppose that Barr Wyeth would stay in this country after he’d killed the sheriff, do yuh, Bob?”

“No-o-o, I don’t reckon he would, under them circumstances.”

“Then what do yuh mean?”

“Andy,” said Bob thoughtfully, “a crook is like a calf; if yuh give ’em enough rope they’ll tangle themselves. There ain’t never been an outlaw yet, if he was left alone long enough, that didn’t wind up his own little ball of yarn. Mebbe they figure that it’s hard luck that stops ’em; mebbe they can look back and see where a little mistake upset their game, and mostly always that little mistake was in goin’ too —— far.

“That’s the trouble with ’em, Andy. The game looks so easy to beat that they pyramid their bets. When yo’re right, there’s an element of luck, but when yo’re wrong, yore luck is packin’ a hoodoo. The way I figure it is this: Crime is a payin’ proposition—for the devil.”

Andy listened closely and nodded his head.

“Yeah, I betcha yo’re right, Bob; but I don’t know a —— thing yo’re talkin’ about. I *sabe* the calf and the rope idea, but I dunno who yo’re referrin’ to.”

“I ain’t sure myself,” grinned Bob, “but didn’t I say a lot of stuff, like a temperance orator?”

“Yuh sure can use words, cowboy,” said Andy generously. “But I’d rather have yuh tell me what yuh was lookin’ for under Buck’s poker-table.”

“Didn’t yuh see it?” queried Bob. “Yuh didn’t? There’s a bullet hole in the floor, Andy.”

Andy rubbed his nose violently and caressed his sore jaw.

“Uh-h-h-huh. That’s the same bullet that nicked that cowboy’s boot-sole, eh?”

Bob nodded thoughtfully.

“Yeah, the same bullet.”

“Now,” said Andy wonderingly, “who in —— tried to shoot him in the feet, Bob?”

“That nicked sole was just a little mistake that the devil put in, Andy. I betcha he’s laughin’ right now.”

“I’ll betcha he is, but I don’t know what for,” confessed Andy foolishly, as he got to his feet. “Let’s go and git some supper.”

After supper they ran into Windy Hart and Mark Ells, and Bob asked them what they were doing.

“We’re still with the Lightnin’,” grinned Windy.

“Runnin’ it on yore own hook?”

“Well, yuh might say so,” agreed Windy. “We was goin’ to pull out, ’cause there wasn’t nobody to pay us a salary nor to tell us what to do; but Buck Kelly sent that gabby-mouthed Pell out to tell us to stay on the job. I reckon Kelly is goin’ to take over the outfit.”

“I s’pose,” nodded Bob seriously, and then, “Windy, I’m goin’ to ask you a question, and I hope you’ll answer it straight. Does Barr Wyeth ride a horse that wears a bar-shoe?”

Windy hesitated over the answer and looked closely at Mark Ells, who rubbed his nose thoughtfully.

“He did,” said Mark slowly. “That hammer-headed sorrel wore a bar-shoe.”

“But that sorrel has been dead for a month,” stated Windy. “Got cut up in the bob-wire and we had to shoot him.”

“I tell yuh where yuh can find the remains,” offered Mark. “Yuh know where yuh hit the wire fence this side of the ranch? She kinda angles along the hill? Well, that sorrel is in the first coulee off the road. Likely the coyotes have packed it mostly all away, but yuh might take a look.”

“I’m sure obliged to yuh,” said Bob. “I sure am.”

“First time I ever got thanked for a dead horse,” grinned Mark.

“What’s this stuff about the reward for Barr Wyeth?” queried Windy. “Fifteen hundred, is it? Suppose they lynch him, who gets the reward?”

“There won’t be none paid,” said Andy flatly.

From there they went over to Doctor Knowles’ office to inquire regarding the condition of Mellody. The doctor took them back into the bedroom and they found Mellody fully conscious but very peevish.

“By ——, I hope you jaspers ain’t tongue-tied,” he said painfully. “This —— doctor won’t talk, except to tell me that I got shot in a poker game and that the *hombre* that shot me is in jail. Is that right?”

Bob nodded.

“Yeah, that’s true, Mellody.”

“Who shot me?”

“Splinter—the fat cowboy you was drinkin’ with.”

“Yeah?” Mellody’s eyes opened wide. “What fer?”

“Don’tcha remember of accusin’ him of cheatin’?”

Mellody wrinkled his brow and shut one eye as he squinted at Bob.

“Did I? Well, by the mighty Missouri River, that’s queer hooch we was drinkin’. My ——, I must ’a’ been drunk! ’F anybody’d asked me, I’d ’a’ said that the game hadn’t started yet.”

“Thasso?” Bob grinned widely. “Then who did shoot yuh, Mellody?”

“—— if I know—’cause I had my head turned.”

“How many shots were fired?”

“How in —— do I know? I never heard any of ’em.”

“Were you so drunk that you wouldn’t ’a’ heard a shot fired—if yuh hadn’t been hit?”

“Not me. I never was so drunk that I couldn’t start runnin’ any old time they starts throwin’ lead.”

“Then yuh don’t know whether Splinter shot yuh or not, eh?”

Mellody shook his head.

“I tell yuh I don’t know who shot me. He was awful drunk, I remember that; so drunk that he couldn’t get money out of his pocket.”

“Who was you lookin’ at when you turned around, Mellody?”

“I been wonderin’ about that myself. I was pretty drunk, and I might ’a’ been mistaken, but I thought it was Windy Smith, the foreman of the Ten-Bar-B outfit.”

“Who’s he?” queried Andy, but no one seemed able to explain.

Bob nodded slowly and turned back to the door. It was dark outside, and half-way across the street to the Buck Horn they met Windy and Mark.

“Gotta question to ask yuh,” said Bob, grinning. “What color horse has Barr Wyeth been ridin’ since his sorrel had to be shot?”

“Sorrel,” grunted Windy. “They looked a little alike, but the one we shot was bigger.”

“Thank yuh again,” grunted Bob and headed for the hitch-rack.

“Where yuh goin’?” asked Andy.

“Goin’ to take a little ride, boss. You stay here and keep your eyes and ears open. Tomorrow is Saturday and everybody in the country will be in town; *sabe*? It would be a —— of a fine day to pull off a lynchin’.”

Andy gawped after him as he rode away down the street, and turned back toward the office. Andy was a slow thinker, and had no idea what it was all about, but he had confidence in his new deputy.

Bob rode straight to the place designated by Mark Ells, and had little trouble in locating the remains of the hammer-headed sorrel. There was little left except bones, but with the aid of matches he was able to find that all four shoes were still on the hoofs, and the right front hoof was shod with a bar-shoe.

A coyote yapped at him from the side of the hill, and from back in the brushy coulee came the spitting snarl of a hunting bobcat that had probably

been cheated of its prey. Bob swung back on his horse and headed into the hills toward the JHF ranch.

He whistled unmusically between his teeth and grinned at the moon which was just peeping over the top of Blackfeet Pass.

“My knittin’ is almost done, bronc,” he told his horse, “or mebbe it’s more like weavin’ a pattern so that both sides come out the same. A fool crook only looks after the big things, and the first thing he knows a little thing gets tangled in his spurs and trips him.”

It was a long ways across the hills to the JHF, but Bob was in no hurry. It was nearly midnight when he rode down the slope behind the big barn and tied his horse to the corral fence. There was a faint light in one of the ranch-house windows, and Bob grinned as he noticed that this was in the spare bedroom.

He went softly into the bunk-house and sat down beside a window, without lighting a lamp. The moonlight flooded the old ranch-house, and cast heavy shadows across the yard. A cow bawled sleepily and a big, gray owl drifted like a shadow across the moonlit space and faded into the cottonwoods behind the house.

Then Bob saw a man come out of the shadows and stand looking toward the house. After a moment he walked boldly across the lighted space and up to the window, where he blended into the shadows.

Bob stepped to the door and opened it a few inches. He heard the soft creak as the window was raised, but could hear no voices. Quickly he turned and went to a rear window, which he opened, and crawled outside. By circling the corral he could keep in the shadows of the barn until he came to the shadows of the cottonwoods.

He went softly, taking plenty of time. The lamp had been extinguished now, but he could hear soft voices. Cautiously he circled the house until only the corner separated him from the man at the window. It was Barr Wyeth talking—

“—last place they’d look for me, and I had to have food.”

He was unable to hear Nell Wyeth’s reply, but she must have told him to come into the kitchen, because he said—

“Anythin’, Nell, just so it’s food.”

He stepped away from the window, came around the corner and ran into the muzzle of Bob's six-shooter.

He smothered a curse and his arms instinctively went up. Without a word, Bob stepped in and took Barr's gun from its holster. The moonlight flashed on his badge and Barr saw it.

"Turned sheriff to get me, eh?" he sneered.

"Somethin' like that," said Bob coldly. "Turn around and head for the kitchen. Yuh don't need to keep your hands up, Wyeth."

Nell Wyeth had unlocked the kitchen door and was putting food on the table when Bob herded his captive inside. She was only dressed in a night gown and her hair was hanging loosely around her shoulders.

She stared at Bob and her hands went to her mouth, as if to stifle a scream. Barr sank down in a chair and stared at the floor. He was uncombed, unkempt and the lines of his face were graved deeply.

"He turned deputy sheriff to get me, Nell," said Barr in a flat voice. "He's makin' good."

The sound of voices had awakened Ma Fann and now she leaned in around the dining-room doorway, her night-cap awry, her old eyes heavy with sleep.

"What in the world!" she exclaimed wonderingly.

Bob said nothing, but he watched Barr closely. Nell turned away from the table and sank down in a chair, crying wearily.

"Ma," said Bob softly, "I reckon Barr Wyeth is hungry."

Barr lifted his face and stared at Bob.

"A —— of a lot you care, Kern."

"I s'pose," said Bob sadly.

"I'll get him a meal," said Ma Fann. "Just wait until I slip on some clothes. Nell, you better put on some, too."

Nell got to her feet and walked to the door, where she turned and looked at Bob.

"You're satisfied now, aren't you?" she asked bitterly. "You are a very good prophet, Bob Kern."

"Yes'm," nodded Bob, "I s'pose I am."

Neither of the two men spoke while Ma Fann was dressing. She had explained things to John Fann, who came out with her, his head still swathed in bandages. He looked at Barr Wyeth and shook his head sadly, but turned to Bob—

“You are a deputy sheriff now, Bob?”

“Yeah, I am, John. Took the job today.”

“I suppose I’m already convicted,” observed Barr. There was a trace of his old sarcastic smile now.

Bob nodded—

“Yeah, I s’pose you’d call it that.”

“Can you wait for me to make a pot of coffee?” asked Ma Fann.

“Everything else is cold.”

Barr drew his chair up to the table and attacked the food like a starving man.

“Don’t make me wait for the coffee. I’d like some, y’betcha, but I can’t wait.”

Ma Fann watched him for a moment, shook her head sadly and began preparing a pot of coffee. Nell came in and sat down across the table from Barr. She did not look at Bob, who had sat down, holding the six-shooter in his lap. He had put Barr’s gun in his own holster.

“Splinter still in jail?” asked John Fann.

“Yeah.”

“Splinter?”

Barr Wyeth turned and stared at Bob.

“Did you put him in, too?”

“Nope. Andy put him in for gunnin’ a feller in a poker-game. The man will get well.”

“Well, I’ll have company, anyway,” observed Barr.

“Barr, don’t talk like that!” Nell Wyeth’s voice was full of tears. “Oh, why did you come here tonight? We all thought you had left the country and was in a safe place.”

“Our friend Kern didn’t,” said Barr bitterly.

“Do you have to take him to Bunch Grass?” asked John Fann.

“Yeah, I do, John,” nodded Bob. “Why ask me that?”

“Knowing how the people feel about him,” said John, “don’t you think it is a little dangerous? And tomorrow everybody in the country will be in town, Bob.”

“I reckon that’ll be all right, John.”

Barr finished his meal and turned to Bob—

“Well, let’s go, Kern, I’m ready.”

“You ain’t runnin’ this party,” stated Bob, a half-grin on his face. “Yuh see, yo’re a dangerous person, and I’m waitin’ for daylight.”

“What’s the idea?”

“Bob, you don’t mean that, do you?” asked John Fann quickly. “Are you going to let every one——”

“He wants to show me to everybody,” interrupted Barr. “Somebody better make him a banner to carry.”

“Well——” John Fann shook his head—“I don’t know what it is all about, but you’re taking a big chance of having your prisoner taken away from you, Bob.”

“Yeah, I s’pose,” nodded Bob sadly. “This is the first man I ever arrested, and yuh hadn’t ought to try and stop me from advertisin’ it, John.”

John Fann squinted closely at Bob. He knew Bob too well to accept such a shallow excuse. There was something beside vanity connected with bringing Barr Wyeth into Bunch Grass in daylight, but John Fann did not know what it was.

Ma Fann cleared away the dishes and food. On the shelf an old alarm clock ticked noisily. Each of the five people in the little kitchen was deep in his own thoughts. One of the babies cried fitfully and Ma Fann bustled out of the room. Barr Wyeth lifted his head and looked at his wife, but she was staring down at the table-cloth. He turned and looked at Bob Kern.

“It’s goin’ to be hard on them,” he said softly, meaning the babies. There was no bitterness in his voice now.

Bob smiled softly and eased himself in his chair.

For half an hour the inhabitants of Bunch Grass carried water from all available wells, formed a bucket-brigade and did everything possible to save Doctor Knowles’ office and home, but to no avail.

At five o'clock in the morning a cowboy, coming out of the Buck Horn, had seen the flames inside the house. Quickly he had sounded the alarm. The place was an inferno when enough men arrived to carry out Mellody, the wounded cowboy, who had been slightly scorched. The doctor's desk and a few pieces of furniture had been saved, but the rest of it went up in the flames that threatened to sweep the whole town.

No one knew the cause of the fire. Doctor Knowles swore that he had left no lamp burning, and at that time of the year there was no need of a fire, except for cooking purposes. Shortly after daylight the town began to fill up with people from the outlying districts, who made Saturday sort of a gala shopping day. They gazed upon the ruins, wished aloud that they had been there to see the blaze, and went on about their business.

As usual, Pastry Pell was much in evidence and told a graphic story of the fire. He had been drinking, and as a result the stories were totally different. Buck Kelly's trade started early, and the thirst-burdened cattlemen crowded the place to capacity.

It had been decided that Chet Gunning's funeral would be held that afternoon, and the conversation naturally turned to the excitement of the last few days. There was much argument over the robbery of John the Baptist, but that was secondary to the killing of the sheriff.

"And there ain't been nothin' done to lay the deadwood on Barr Wyeth either," declared "Butch" Fletcher, who owned the Flying-M outfit. "It's a —— of a note when a feller can shoot the sheriff and git plumb away without even havin' anybody on his trail."

"Been wires sent to every sheriff," said another cattleman, who was so badly crosseyed that no one could ever tell in which direction he was looking.

"Might as well send 'em a Christmas present," grunted Butch. "Catch him and string him up, that's my motto."

Whisky began to percolate widely and it appeared that Chet Gunning was a bloodbrother to every cow-man in the town. A few more drinks, and all they lived for was revenge.

It was about ten o'clock when a half-drunk cowboy floundered into the Buck Horn and blurted out news that sent every man in the place on a run

for the door. Bob Kern was riding into town with Barr Wyeth, and just behind them came John the Baptist, Ma Fann and Nell Wyeth in a buggy.

Andy Allard saw them, too. He darted back to Splinter's cell, threw open the door and handed the surprised Splinter a Winchester rifle.

"C'm on!" he blurted. "What in ——'s the use of havin' a prisoner, if yuh don't use him?"

Splinter trotted out behind him and they raced up the street, shoving cartridges into the loading-gates of their rifles.

The crowd from the Buck Horn had swung out into the street, and almost surrounded Bob and Barr. Andy and Splinter shoved their way through and waved the crowd back.

Butch Fletcher shoved his way to the front.

"Yuh might as well cave in and let us have him," he declared. "It'll save trouble and expense."

Most of the crowd were half-drunk and Bob knew they were in a dangerous mood, but he only grinned and shook his head.

"Butch, yo're a four-flusher," he said slowly.

"The —— I am!" Butch snapped.

He turned and looked at those about him.

"Are we goin' to let him get away with this kinda stuff?"

"No!" yelled a voice at the rear of the crowd. "Git a rope!"

"That sounded like Pastry Pell," said Bob, standing up in his stirrups and peering over the crowd; but the owner of the voice had ducked.

"Well, whatcha goin' to do?" asked Andy impatiently. "I'm itchin' to ruin the census."

"You fellers want to lynch him, don'tcha?" queried Bob.

"We're goin' to lynch him," corrected Butch.

"Without givin' him a chance to tell his story?"

"What in —— story has he got to tell?" demanded Buck Kelly. "This is a dead open-and-shut case."

"Still, he's got a right to tell his side, ain't he?"

There were murmurs of approval.

"Let him tell it," agreed Butch. "We don't have to believe it, do we, Kern?"

“No,” Bob shook his head. “I ain’t askin’ yuh to believe it—just to listen, Butch.”

“All right, let him go ahead and tell us,” agreed Butch.

Barr looked questioningly at Bob. He had no defense—nothing to tell that would help his case in any way. The crowd moved in closer and ranged in sort of a semi-circle, so that all might see and hear. Directly in front of Bob and Barr was Buck Kelly, Butch Fletcher, Mark Ells.

Pastry Pell had summoned up enough courage to shove his way to the front, and now he was at the edge of the circle to the right of the two mounted men.

Andy and Splinter still held their rifles ready for action and watched the crowd.

“Well, why in —— don’t he talk?” asked one of the men. “He had so —— much to say, didn’t he?”

“I know his story better than he does,” said Bob slowly, “so he won’t mind if I tell it for him. This story kinda dates back a little bit, gents. It starts with the stealin’ of JHF cattle by a man who rides a horse that wears a bar-shoe. We found a yearling with the JHF blotted and the Lightnin’ run on. That was Barr Wyeth’s start.”

“That’s a good story,” applauded a cowboy.

“Barr Wyeth hated John Fann,” continued Bob, “and that was a good excuse for him to steal JHF cattle. Chet Gunnin’ found out about the rustlin’ and the word kinda got to Barr Wyeth. Naturally, he gets mad and declares war. He tries to kill John Fann with a bottle of hooch, but missed a bull’s-eye by an inch.

“Barr Wyeth drank and gambled away his ranch to Buck Kelly, and he needs money goshawful bad. John Fann mortgages his ranch to Buck Kelly for eight thousand dollars and starts home with the money, when he gets shot with a forty-four bullet and robbed of his money.

“Barr Wyeth was in the cañon at that time, and the man who shot and robbed John Fann rode a horse that wore a bar-shoe. I know this, because I found where he had stood when he fired the shot and I trailed that bar-shoe over the rim of the cañon. Kinda looks like Barr Wyeth kept up the good work, don’t it?”

The crowd grunted an approval. They were interested in this story, because the most of it was new to them.

“It must ’a’ been Barr Wyeth,” continued Bob. “There were only three men, Buck Kelly, Judge Freeman and John Fann, who knew about the mortgage money. And I’ll tell yuh why John Fann drew that money. It was to help Barr Wyeth pay off his debts.

“John Fann thought that Barr was stealin’ cows to try and pay off his debts, and he was goin’ to give Barr this money.”

“How did Barr know that John Fann had this money?” asked Butch Fletcher.

“That’s got me beat,” grinned Bob, and looked at the blank face of his prisoner.

He turned and looked at the three people in the buggy. Nell Wyeth’s face was very white and she turned away, a look of loathing for his apparently deliberate speech of accusation. Ma Fann tried to smile at Bob, but it was a pitiful attempt to show that she still had confidence in him.

“Then,” said Bob, turning back to the crowd, “there comes the shootin’ of Chet Gunnin’. I seen a lot of that. Barr Wyeth accused Gunnin’ of havin’ a hand in the robbin’ of John Fann, but I don’t *sabe* what he meant.

“Anyway, Barr dove out through the window, Chet rushes out through the door and starts shootin’. Somebody plugs him twice and he’s dead.”

Bob stopped and looked around at the circle of faces.

“Barr Wyeth shoots a forty-four Colt gun, gents; remember this. There’s a certain party in Bunch Grass who delights in packin’ lies. Mebbe he can’t help it. Some folks can’t, especially if they want to start a conversation. I mean Pastry Pell.”

All eyes turned to Pastry, who tried to back into the crowd, but they closed ranks and stopped him.

“Yeah, he lied to Barr Wyeth about the JHF and he lied to the JHF about the Lightnin’. Now, we’ll get back to the cattle rustlin’. Over five hundred head of the JHF stock has faded away, and that’s some cows, gents. It’s a man-sized job to dispose of that many cows. Yuh can’t blot brands and get away with it. No sir, you’ve got to be slicker than that.

“It had me fightin’ my head for a long time, but along comes a cowboy from Wyomin’ and hands me the key. He’s lookin’ for the Ten-Bar-B outfit.

Ever hear of it?”

The cattlemen shook their heads. It was not a known brand.

“I didn’t *sabe* it,” grinned Bob. “This puncher is looking for a job with that outfit. He said that the owner of that brand had driven a lot of stock over into Wyoming and sold ’em to the outfit he worked for. Sold ’em cheap, too. Said the range was burnt out over here.

“This was the same puncher that Splinter was supposed to have leaded up in a poker game.”

“Supposed to?” queried Kelly. “Whatcha mean, Kern?”

“What I just said,” replied Bob softly. “Splinter was too drunk to shoot anybody. Mellody had a bullet in him and there’s one in the floor under the table, Buck. That bullet nicked Mellody’s boot.”

“Well, whatcha drivin’ at?” asked Butch Fletcher.

“Here’s what I mean,” said Bob coldly. “Wyeth’s horse that wore the bar-shoe has been dead a month. The shoes are still on its hoofs. Barr Wyeth is too wise to half-blot a JHF and smear on a Lightnin’ brand. Somebody knew of the bar-shoe and they didn’t know that Wyeth’s horse was dead. They bungled the brand-blottin’ to cover their own work.”

“That’s just yore idea, ain’t it?” queried a cowboy.

“Yeah, that’s right,” smiled Bob; “but yuh must remember that a rider of a bar-shoe horse shot and robbed John Fann. Yes sir, and they shot him with a forty-four bullet, but—” Bob fumbled in his pocket and drew out the cartridge shell he had found near the cañon rim—“here’s the shell of that cartridge. It’s swelled so it won’t fit a forty-four.”

Bob held it up for them to see.

“Gents, that shell was fired from a forty-five gun!”

“What does that mean?” asked Kelly, a trifle nervously.

“Just that and nothin’ more, Kelly,” replied Bob. “I’m tellin’ this tale as fast as I can. As I told yuh before, Barr Wyeth shoots a forty-four gun. The bullets that Doctor Knowles took out of Chet Gunnin’ were forty-fives.”

“The —— they were!” exploded Andy Allard. “I never knowed that.”

“Here’s what happened,” explained Bob. “Somebody was just gettin’ off their horse in front of the JHF ranchhouse when Chet busts out and starts

shootin'. They just naturally shoots back at him. Barr Wyeth couldn't 'a' fired them shots."

"Well, who in —— did?" demanded Butch Fletcher.

"You'd accuse me of guessin', if I told yuh," grinned Bob, "but I'll tell yuh some more. This Mellody cowpuncher comes lookin' for the Ten-Bar-B outfit, of which there ain't no such an animal—not visible.

"Accordin' to Hoyle he ain't supposed to come here after that ghost-outfit, and there's certain folks who ain't noways in favor of his comin'. He gets drunk and sets into a poker game, gents. Then he turns his head and sees the owner of the Ten-Bar-B outfit coming in."

Bob eased back in his saddle and his muscles seemed to draw taut.

"Pastry Pell," he said slowly, "you stay where you are."

Bob's eyes drew down and he moved a trifle sideways in his saddle.

"Gents, the man who stole JHF cows; the man who shot and robbed John Fann; the man who killed Chet Gunnin' and the man who sold the Ten-Bar-B cows to the Wyomin' outfit is the same man. If you take the JHF brand, make an O out of the J, make the F into a B and draw a bar in front of the O, you've got the Ten-Bar-B."

A murmur of astonishment came from the audience.

"By ——, that's right!" exploded Butch Fletcher. "Who——"

"And this Mellody got shot because he recognized him," gritted Bob. "There was two shots, gents. Splinter was so drunk that he never knew that they took his gun and fired it into the floor. The hole is there under the poker-table and there's a notch in Mellody's boot-sole."

"But who in —— was it?" panted Andy, never taking his eyes off the circle.

"A man who talked too much; a man who shoots a forty-five six-gun—our harmless friend, Pastry Pell!"

Pastry Pell's gun had always been a joke in the Bunch Grass country, but his joke-gun was only part of his harmless make-up. Swiftly as Bob Kern could draw, he would have been far too slow, but Andy was watching closely and fired the Winchester from his hip.

And almost over the spouting muzzle of that rifle, straight out of his saddle plunged Bob Kern, and his arms wrapped in a death-like grip around the body of Buck Kelly. They crashed back into the crowd, just as Pastry Pell spun on his heel and went face-down, riddled with bullets from the Winchester.

The crowd dragged Bob and Buck to their feet, and Andy managed to snap handcuffs onto Buck's wrists.

"What did Buck have to do with it?" demanded Butch excitedly.

"He was the brains of it," panted Bob. "It took brains to figure that brand, Butch. I never suspicioned Buck until Mellody got shot. He shot Mellody because Mellody recognized Pastry as the owner of the Ten-Bar-B, and they knew the game was up."

Bob turned to Buck—

"Pastry set fire to Doc Knowles' house to try and get rid of Mellody, didn't he?"

"You know too —— much now!" snarled Kelly.

"Well, I reckon we'll just use the rope pronto," observed Butch. "No use delayin' this, is there, gents?"

"Wait a minute," said Bob. "I saved you fellers from doin' a —— bad job, didn't I? Well, let the law handle this case. There ain't any of yuh so —— perfect that you've got any right to hang a man."

"That's right," agreed a cowboy. "If yuh ever stop to assay yourself—eh, Bob?"

Barr Wyeth came pawing his way through the crowd and clapped Bob on the shoulder.

"I ain't got words enough to say what I want to, Bob. Pastry Pell lived long enough to tell me that everythin' you told 'em was true, and he said that Kelly always dealt a crooked game with me 'cause he wanted my ranch, and he told me that he had lied to me about you and John Fann. Kelly wanted to break the JHF and buy it cheap.

"But Pastry told us that Kelly had nothing to do with shootin' and robbin' of John Fann. He heard John and Kelly talkin' about it when he was washin' his face near the door of Kelly's office; so he thought he'd make a little money for himself. He thought it would help Kelly break the JHF."

“Yeah, and I —— near done it, too,” mumbled Kelly. “But just to show yuh that I quit the game, I’m givin’ yuh back your notes, Wyeth. I don’t reckon I’ll have any use for a cattle ranch. Tear up John Fann’s mortgage. Now put me in jail and call it a day.”

Andy and several of the cowboys led him to the jail, while others picked up the remains of Pastry Pell and carried him into the Buck Horn.

John the Baptist, Ma Fann and Nell Wyeth were still sitting in the buggy in the middle of the street. Barr had walked over to them and now he was leaning on a wheel. None of them were talking, but all were watching Bob Kern, who was still standing in the street, thinking it over.

“Bob Kern!” called Nell Wyeth.

Bob lifted his head and his serious expression faded into a broad grin. He went slowly over, patted the buggy horse and adjusted the bridle.

“Bob Kern, can you ever——” Nell Wyeth’s voice broke——“can you ever forgive me for what I’ve thought and said?”

“Why did you do this for us?” asked Barr hoarsely. “You knew we hated you, Kern. I don’t understand.”

“Well——” John Fann cleared his throat with difficulty——“Well, why don’t you tell them, Bob?”

“I’ll tell yuh,” Bob grinned softly, as he rubbed the palm of his hand on the buggywheel, “I—I—John, you asked me to round up all the JHF cattle, and I’m lazy as the dickens, and I didn’t want to do it; so I stalled around, tryin’ to keep from workin’ and I couldn’t help findin’ out things.

“Yuh see, I wanted to come into town when there was a crowd; so that nobody would miss my oration. Tha’sall, I reckon. Laziness drove me to become a de-teck-itive.”

Bob gave the wheel a final rub and turned away, going toward the sheriff’s office.

“Bob!” called Ma Fann softly.

He stopped and looked back.

“Don’t you know it is wrong to lie, Bob?”

Bob shuffled his toe in the dust and looked back at her seriously.

“Yes’m, Ma, it sure is. Liars don’t never go to heaven.”

He grinned widely and went on.

“If *he* don’t,” said Nell Wyeth softly, “it’s because there’s a better place than that.”

John the Baptist picked up the lines and nodded his head.

“I reckon we better be goin’ home. Get your horse, son.”

“All right, dad,” said Barr, and headed for the hitch-rack.

Bob Kern stood in the doorway of the office and saw them drive away, a look of unutterable sadness in his homely face. Then he shook his head, as if to drive away memories, and smiled softly to himself.

Transcriber’s Note

1. The three paragraphs starting with “Perhaps, she thought” are shown as printed, though there is an apparent localized transposition of the Barr Wyeth and Bob Kern characters.
2. This story appeared in the January 10, 1924 issue of *Adventure* magazine.

*** END OF THE PROJECT GUTENBERG EBOOK THE LOOM OF
LIES ***

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